



UN-RAVELING THE JEWISH STATE

HOW THE UN GENERAL ASSEMBLY'S LONG ENCOUNTER WITH
SOUTH AFRICAN APARTHEID LED TO THE "RACIALIZATION" OF PALESTINE



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1. Reconceptualized

Since Hamas undertook its “Al-Aqsa Flood” project on October 7, 2023, a corollary project designed to destroy Israel’s reputation in the West has been undertaken by multitudes.¹ Built on familiar narratives of the country’s extreme racism, leading to its construction and maintenance of an apartheid system in territories that are deemed under international law to be occupied by it, the issue has seeped into the consciousness of activists, scholars, leaders, media figures and everyday people as an affront to humanity. A resulting challenge that now confronts World Jewry — and not just Israelis — is how to assess a concomitant resurgence in what is often described as the world’s “oldest hatred,” antisemitism. Thus, while Israel can claim recent victories in the military conflicts ignited by its most passionate and lethal enemies, it must be acknowledged that on a global basis, its defeat in the “war of words” (Qutami and Zahzah, 2020) raises larger questions for a singular people whose presence is nearly worldwide.

It is worth revisiting the question of Israel, racism and apartheid now from a multilayered perspective now, and examining it in the context of a larger history of ideas, because much has changed since the years of the current century’s first decade, when it first became clear that Israel was encountering extreme turbulence with regard to the subject of its relationships with Arabs who view themselves as Palestinian. This people, who have defined themselves by “both land dis-

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possession and the 1948 Nakba (Catastrophe), which was accompanied by ethnic cleansing” (Zureik, 2016, xiii), has become at the fulcrum of what may be the defining controversy of the modern era. Recognizing that their projected history has cast an ongoing negative light on Israel and Jews that support it, concerned organizations in the Jewish world have long recognized the challenge of the battle of hearts and minds over their past experience and present situation.² The issue gained resumed urgency with the waning of the Oslo Accords process, which had brought to an end a more quiescent period in organized Israel hatred during the 1990s, followed by the violence of the “Second (or Al-Aqsa) Intifada” (2000-2005), and followed thereafter by Hamas taking full control of Gaza after an unexpected landslide victory in local elections (2006).³ The increasing anathema and change in tone by Israel’s enemies was alarming even before then, but it was not necessarily considered entirely unmanageable; that is, accusations of racism, settler-colonialism, ethnic cleansing, apartheid and much else were hardly new, and arguably could be seen as unlikely to jeopardize the long-term trajectory of Israel’s economic, societal and cultural progress (Adelman, 2008, 15–26).

The violence that has steadily risen against Jewish communities as a result of more recent events — particularly and events taking place in the aftermath of October 7, 2023 — has understandably caused considerable concern that an old era has returned anew, but in its latest incarnation, the “Zionist” label offers a convenient disguise. That is, in the popular imagination, it is no longer true that “the Jews are our misfortune”⁴ but rather the Zionists.⁵ The now successfully globalized intifada, or at least one that is in a state of effervescent vitality, has roots that can be easily traced to the mid-2010s,⁶ but the rising tide clearly has much deeper roots. The challenge here is apart from the increasing

urgency for defensive measures to protect soft targets from rising intimidation and violence, to understand these roots better. This is what leads to inquiring more deeply into the origin and nature of the racism and apartheid narratives that are now hurled so pervasively and incessantly against Israel. In so examining them, it should become obvious that the question is not whether they are “true” in any empirical sense, but whether — accepting that they are planted, poisonous, and poised to grow, and must therefore be expected to continue to threaten anyone open to being receptive toward Israel — there are ways to counter the threats they pose from a better informed and more insightful perspective.

This book examines the question from one particular angle: the manner in which the United Nations — and in particular, its General Assembly, or “UNGA” — has become both a breeding ground and a fulcrum for these narratives. Its core argument is that over the past half century, the UNGA’s committees, representatives, processes, priorities, rapporteurs and leaders have become the willing midwives of those who seek the birth of the era of Israel’s violent destruction. They do so while assuming they are applying the same justified tactics, essentially on the same basis, that were deployed against South Africa during the long decades of its apartheid era. Often led by but by no means limited to Islamist Iran, they have socialized, authenticated and normalized broad anti-Israel public sentiment into the fabric of Western societies through an ever expanding universe of claims and controversies relating to apartheid and racial discrimination. As one of six “principal organs” of the UN,⁷ the primary way the UNGA has defined and defended this narrative is by allowing hostile member states and their hirelings to use its forums and impact delivery vehicles to casti-

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gate Israel for having “usurped” on racist grounds the “ancestral homeland” of Palestine.⁸

Essentially, such claims are merely elaborative echoes of the powerful slanders of Dr. Fayez Sayegh, an Arab diplomat whose career in the UNGA spanned the critical decades of this long process. His corrupt influence, aided by his immense charm and prolific pen, will be considered in some detail in section IV. But over 60 years ago, and during a brief interlude from his retainer on behalf of various Arab states, whether individually or as a collective, he made the case that still animates how the expanding network of Israel’s most diehard enemies — both within the UNGA and outside it — still thinks (Sayegh, 1965, 214):

Racism is not an acquired trait of the Zionist settler-state. Nor is it an accidental, passing feature of the Israeli scene. It is congenial, essential and permanent. For it is inherent in the very ideology of Zionism and in the basic motivation for Zionist colonisation and statehood.

The singular impact of this assertion is clear not only from the UNGA’s passage of its infamous “Zionism as Racism” resolution (3379) ten years later (1975),⁹ which basically reiterates it and which he both largely authored and tirelessly evangelized, but also the fact that it derives from a tradition of characterizing Israel — again, using his words — as having a “vital link” with western imperialism (, 21). Because racism has come to be widely understood over the past half century as both cause and effect of imperialism’s success, the view has become entrenched that Israel’s capitulation is only the start of a struggle to end a multi-century era in which the world’s “national capitalist economies” engineered “the racialization of the peoples of the entire world” (Bonilla-Silva, 1999, 89). The passage of Resolution 3379 gave Israel’s adversaries the template for solidifying worldwide opposition in the name of an “enlightened worldview adopted by good people.”¹⁰ This, in turn, resulted from a broad shift in academic understandings

about the nature of race and racism that occurred during the same era that the UN became operational, with a key ingredient being “the emergence of a new transnational political culture during the post-war era, that also included other solidarity movements, as well as student’s, green, peace and women’s movements, often conceptualized as ‘the new social movements,’” coupled with South African anti-apartheid activism then and Israeli anti-apartheid activism now, creating what has become “a ‘movement of movements.’”¹¹

Notes to Chapter 1

¹ Said-1978a.

² E.g., Michael Herzog, “Delegitimization: Attitudes Toward Israel and The Jewish People,” The Jewish People Policy Institute, <https://jppi.org.il/uploads/DELEGITIMIZATION-%20ATTITUDES%20TOWARD%20ISRAEL%20AND%20THE%20JEWISH%20PEOPLE.pdf>. (“The phenomenon of delegitimization and contending with it is a type of asymmetric warfare, but this time conducted on the battlefield of ideas.”)

³ Anna Mier y Teran, “War In Palestine and Its Impact on Western Countries,” Universidad de Navarra Global Affairs and Strategic Studies, January 20, 2024. <https://www.unav.edu/web/global-affairs/war-in-palestine-and-its-impact-on-western-countries>.

⁴ In Nazi German, the phrase “Die Juden sind unser Unglück!” was a notorious antisemitic slogan.

⁵ Johannes Due Enstad (2024). “Facing antisemitism in Europe: individual and country-level predictors of Jews’ victimization and fear across twelve countries.” *Social Forces*, 103(3), 1186–1209. <https://doi.org/10.1093/sf/soae091>.

⁶ A call-to-action was made by the International Union of Muslim Scholars (IUMS), a group led since its 2004 inception by Sheikh Yusuf Al-Qaradawi, “a leading Islamic jurist whose pronouncements the Muslim Brotherhood consider authoritative.” K Shideler

and D. Daoud, "Command and Control: The International Union of Muslim Scholars, The Muslim Brotherhood, and The Call for Global Intifada during Operation Protective Edge," Center for Security Policy Occasional Paper Series. https://www.centerforscuritypolicy.org/wp-content/uploads/2014/08/Command_and_Control_08-21-14_12.50pm.pdf. The IUMS made the call to both the entirety of the Muslim *Ummah* and "free peoples of the world," urging them to "rise up in support of Palestine."

⁷ The UNGA is one of "six principal organs of the United Nations, as established by the UN Charter." United Nations (n.d). Main Bodies. <https://www.un.org/en/about-us/main-bodies>.

⁸ Kali Robinson (Last modified July 12, 2023), "What Is U.S. Policy on the Israeli-Palestinian Conflict?," Council on Foreign Relations. <https://www.cfr.org/backgrounders/what-us-policy-israeli-palestinian-conflict>.

⁹ Elimination of all forms of racial discrimination: Zionism as racism — UNGA resolution 3379, on the report of the Third Committee (A/10320), November 11, 1975, Document A/RES/3379 XXX, <https://www.un.org/unispal/document/auto-insert-181963/>.

¹⁰ Deist, J. (2023). *A Strange Liberty: Politics Drops Its Pretenses*. Ludwig von Mises Institute. <https://mises.org/online-book/strange-liberty-politics-drops-its-pretenses/15-getting-liberalism-wrong>. ("In this view, liberalism is a way of thinking, a kind of enlightened worldview adopted by good people. Liberalism becomes almost undefinable by its breadth: an interconnected passel of open-minded and tolerant attitudes across a swath of 'social' issues. Cosmopolitanism, reason, tolerance, feminism, antiracism, and a healthy degree of support for egalitarian democracy are at the fore; economics is not the focus.")

¹¹ Håkan Thörn, *Anti-Apartheid and the Emergence of a Global Civil Society*, Palgrave: London, 2006, 8.

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The UNGA took up the racial policies of the Union of South Africa during its “very first session,” after being asked by India to address the subject on behalf of its citizens.¹ From that point forward, it is no exaggeration to say that the “South Africa problem” of Apartheid² — the Afrikaans word for “apartness” that became the official name of a pervasive, multi-level “state doctrine” of race-based population control and segregation (Malhotra, 1964, 138) — gradually engulfed the world in nearly perpetual crisis and controversy. The UNGA quickly assumed a pivotal role in responding to the various uproars, as reflected by its thousands of declarations, resolutions, investigations, committee hearings and detailed reports, both early on and over the years. They were produced internally as well as by non-governmental organizations (NGOs) commissioned to investigate and advise on what the conditions exactly were and what precisely should be done about them (Leiss and McKay, 1965). This ferment of activity continued almost without pause until South Africa held its first national “one-person, one-vote” elections in April 1994, by which the ANC leader Nelson Mandela was elected president and the vast panoply of the preceding Afrikaner-dominated government’s race-based laws and measures of societal control and enforcement was effectively revoked.³

While the UNGA’s Secretary-General noted with pride on that occasion that it had remained involved “for more than four decades” and

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had “spearheaded the international campaign against apartheid,”⁴ its beginnings were hardly momentous, when that initial resolution relating to the mistreatment of India’s citizens⁵ — noting only that “friendly relations” had been “impaired” — “barely passed with the necessary two-thirds majority,” supported only by “an extremely small scattering of nations from Europe (France, Iceland, and Norway)” along with “all the states from Africa, Asia, and the Middle East that had experienced the effects of racial discrimination from the West” and “all the Communist countries” (Lauren, 1988, 171). But from 1946 until apartheid became fully established as a “crime against humanity” in 1998 by the Rome Statute, with what appeared to be a powerful enforcement arm (the International Criminal Court), the UNGA’s active involvement against the vast internal control systems and external defense strategies that South Africa deployed to perpetuate apartheid was both far-reaching and profound. Even so, the methodologies revealed in the finalizing of India’s requested initial resolution — framed as a straightforward bilateral dispute between two major nations of the South — revealed important threads in the nature of the UNGA’s role that continued nearly without interruption.

The strength of the anti-apartheid movement grew steadily as tactics evolved, beginning in 1952, when India put forth a motion on apartheid specifically, sensing the opportunity to challenge racial inequalities and thereby help advance the peoples of newly-established Asian and African nations (Klotz, 1995, 43). But even more significantly, after 16 African states joined the UNGA over the course of 1960⁶ and a brutal massacre in Sharpeville that March triggered intense outrage (Lodge, 2011), the UNGA became virtually the exclusive forum through which demands were made that a “new age” embodying “the winds of change” should be summoned to sweep across the

globe.⁷ This resulted in particular from “the growth of national consciousness in Africa” which reflected the dawn of a new, post-colonial order (Jensen, 2016, 52). The start of a new decade, epitomized by the black cover of the November 1960 issue of UNESCO’s monthly magazine featuring only “RACISM!” in a large font, and announcing that “all Member States” were called upon “to take all steps in their power to combat every form of racial discrimination, anti-Semitism, violence and hatred which may occur within their territories,”⁸ exemplified the moment. So too did a unique opportunity emerge for the USSR-led “eastern bloc” of communist countries to meet that moment by throwing their geopolitical support enthusiastically in favor of this exciting opportunity for seismic change, or even upheaval.

Across decades, this coalition held together until South African apartheid finally collapsed but, “for most of the Afro-Asian states, the Soviet Union had been, during their freedom struggle, the enemy of the enemy, and, therefore, a strategic friend” (Bandyopadhyaya, 1977, 140). Even so, the path was hardly smooth. South Africa’s ties to Europe and North America, through its important role in gold and strategic mineral extractivism (critical to restoring financial stability and industrial productivity after World War II) and its strong anti-communist stance, caused the United States and other leading Western nations to resist succumbing to the mounting pressure in favor of South Africa’s diplomatic and economic isolation.⁹ But as its “state doctrine” of systemic racial oppression became further entrenched throughout the 1950s (Klotz, 1995, 43), its fate became the primary focus of both “East vs. West” and “North vs. South” tensions, with the East and South proving that ultimately, they held the long-term advantage. This had major implications for military training and cooperation pacts and strategic alliances, as African and Asian states saw South Africa’s desta-

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bilizing tactics toward its neighbors as proof that its ongoing presence raised “grave ‘potentialities’ for international friction that endangered the maintenance of international peace and security” (Klotz, 1995, 47).

The resulting coalescence of priorities among newly independent states with Soviet technical and geopolitical assistance ensured that “the fight against apartheid gave form to the political project known as the Third World” (Irwin, 2012, 5) — a segment that accounted for “about one-third of UN membership.”¹⁰ While having differences of their own (Leiss and McKay, 1965, 26), their common position on South Africa allowed them to come together in a shared “non-aligned posture” which, in turn, led to their creation of collaborative development and trade arrangements reflecting a vision of “regionalism ...centred around attempts to delink from the logic of capitalist accumulation on a world scale, which was intrinsically structured to privilege the core imperialist countries and Western multinational corporations.”¹¹ As “Afro-Asian countries long dominated by Europe” where “growing nationalism was stimulated by a sense of racial grievance,” they were now in a position to play a critical “swing vote” role in virtually all UNGA deliberations, while also seeking to chart a middle ground between the two superpowers which shifted the focus of their Cold War to the post-colonial agendas of their large and growing populations (Westad, 2016).

Thus, while the UNGA’s overall involvement in the apartheid crisis continued for decades,¹² member-states living in proximity to apartheid also worked more locally to force change. In June 1960, the “Informal Permanent Machinery” became recognized as “the institutional form that African nationalism took in the post-colonial world” (Irwin, 2012, 52). Over time, various conference “groups” known by location — some radical, others moderate — led eventually to the Organisa-

tion of African Unity (1963–2002) and more specialized groups, such as Southern African Development Coordination Conference (SADCC) (1980–1992), challenged the apartheid regime’s destabilizing tactics in the bush and against local resistance.¹³ Also, and especially important in the final decade of apartheid rule, South Africa was under growing pressure due to trade sanctions by major economic partners and disinvestment campaigns that “largely consisted of private pressure but also included some government action.”¹⁴ Altogether, when the struggle that forced apartheid’s end culminated in the early 1990s, Afrikaner elites who had stubbornly defended their racist system of rule finally found their growing inability to maintain the country’s economy, given the choke points on external funding and access to foreign markets, to be unsustainable.¹⁵

While the UNGA nevertheless continues to exude institutional pride in its own deep engagement,¹⁶ what has now been proven true over time is not that the UNGA saved the day, but that the long journey of challenging apartheid affected the UNGA’s culture as much the organization played the decisive role in ending it. The specter of extreme racism, seen lurking for so long while many economically advanced nations were gradually forced away from tolerating it, girded anti-apartheid voices to see the hated system as a feature of their former colonial masters’ capitalist mindsets.¹⁷ In effect, the global South and the UNGA underwent interrelated transformations, “both reflecting and shaping state and civil society discourse and movements” (Abu-Laban and Bakan, 2020, 227), and both having profound impacts on organizational goals and shared understandings based on capitalism itself being antithetical to their post-colonial progress.¹⁸ In the words of a prominent leader of contemporary anti-racism movements, “apartheid could not be explained as simply the expression of

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age-old prejudices or hatreds: in very specific ways, it was a formation of the twentieth century. Apartheid South Africa thus posed in a particularly stark way the question of how capitalism and racism were related.”¹⁹

Events leading up to the UNGA’s December 1965 adoption of the International Convention on the Elimination of All Forms of Racial Discrimination (ICERD)²⁰ offer a starting point for understanding how its efforts against apartheid have come to both define — and distort — its approach toward dealing with racial injustice. Article 3 of the ICERD, by which its 88 signatories (including Israel) and 182 ratifying state parties (including Palestine)²¹ agreed to “particularly condemn” apartheid, together with “racial segregation,”²² indicates its focus on severe state-sanctioned race-based measures. But even before the ICERD was adopted at the end of 1965, the UNGA had already declared a global economic boycott (which was very unevenly enforced) against South Africa through Resolution 1761,²³ the only time it has ever done so. More importantly, that resolution also created a “Special Committee Against Apartheid” to monitor and enforce the boycott. In 2024, the ANC-dominated government of South Africa contended that such a committee could be re-established if another nation (in this case, of course, Israel) is also found in violation of Article 3.²⁴ Thus, putting aside the ICERD’s obligations, Article 3 may have already come with a “self-executing” trigger of a worldwide, UNGA-authorized boycott against any country charged with apartheid, even without any legal enforcement mechanism, which it lacked.

If penalties imposed on a UNGA member-state for engaging in apartheid had at least theoretically been created before the ICERD’s adoption, why was it needed? Its broader focus came about not due to apartheid, but rather because at the start of the 1960s, the scourge of

racism seemed resuscitated around the world — even if it had never actually disappeared — in multiple geographies. The onset of the American civil rights movement²⁵ together with a sudden, mainly Europe-centered “swastika epidemic,” sparked interest and concern, with hostile influences arguably involved even in fanning outrage over racism in the domestic arenas of the United States.²⁶ But the swastika incidents were particularly alarming because they received extensive international press coverage, focused on whether intricately coordinated antisemitic incitements and activities had not been laid rest by Nazi Germany’s defeat in World War II after all.²⁷

In fact, such incidents were what spurred requests for UNGA intervention into racism as a global problem more than anything else. The facts were indeed peculiar. From December 1959 through March 1960, swastika graffiti had suddenly appeared in noteworthy locations within western European cities, initially in West Germany, and eventually in places elsewhere, including North and South America.²⁸ Extensive media coverage and intense political debate followed. What is now known is that at least at its outset, the episode was a disinformation campaign engineered by Soviet intelligence.²⁹ One recent reassessment considered it “a strategic failure”³⁰ because its presumed purpose — undermining West Germany’s status within NATO — failed. But in the long run, it may have been an even greater strategic success than the Soviets could have ever imagined, by fomenting public outcry over whether western (or westernized) nations needed to address their inherently volatile racial and ethnic tensions. Thus, even as *Pravda*, “the official voice of Soviet communism,”³¹ used the swastika epidemic to attack the “racist” intentions of West Germany’s chancellor,³² the issue whether the most insidious form of hatred in Europe still persisted, possibly with subversive official influence, led to an in-

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quiry by a UNGA subcommission, at the behest of Jewish organizations and American and Israeli political leaders.³³

In the process of deliberating on its recommendations, and at the prodding of some African member states,³⁴ the UNGA's Third Committee,³⁵ which oversees all social, humanitarian and cultural issues,³⁶ split racial discrimination and religious intolerance into separate issues and proposed that resolutions be passed on each (Thornberry, 1991, 257). The UNGA duly accepted this without vote and directives were issued to prepare all such drafts in the interest of dealing with "manifestations of discrimination based on differences of race, colour and religion still in evidence throughout the world."³⁷ This led to the UNGA's November 1963 passage of a declaration on racial discrimination (Resolution 1904) followed by the ICERD in December 1965. But establishing consensus on the subject of religious intolerance proved far more difficult and the UNGA made no real progress until it finally passed a separate, relatively innocuous declaration (because of the "conspicuous absence of incitement language") in 1981.³⁸ As for the earlier draft, "the verbal confrontations during the debate, especially between Israel and the Arab states and India and Pakistan, reflected the extent to which ideological factors had intruded" in differing Muslim, Jewish and Hindu viewpoints.³⁹

As for the ICERD — which was the first human rights convention the UNGA had adopted since 1948 — its objectives were placed at the core of its "social, cultural and humanitarian" agenda going forward.⁴⁰ But before it was finalized, and after the United States and Brazil proposed adding a new article which identified anti-Semitism as a type of racism covered by the convention, the Soviet Union used that opportunity to advance its own ideological and geopolitical objectives.⁴¹ Ideologically, its concern was whether such an article could be used

as the basis for challenging its own suppression of communal expressions of Jewish identity and Zionism in the Soviet Union and the satellite states it controlled after World War II because, following a brief hiatus that began soon after Stalin's death in 1953, such practices had resumed to full effect by the end of the 1950s. Geopolitically, it saw an opportunity to build a bridge to the Arab states that were no less furious than ever over Israel's intrusion into what had long been a solidly "pan-Arab" region.

This chain of events requires an understanding of shifting Soviet attitudes toward Israel, Jews and Zionism from the late 1940s to the late 1950s. While relatively relaxed up to the first half of 1948 (Pinkus, 1984, 234), when the USSR supported the post-mandate partition of Palestine — based largely on Stalin's belief that Israel's socialist-leaning leaders would prove amenable to Soviet interests — relations had soured significantly by 1949–50 due to several factors. These included Stalin's alarm over a surprisingly massive Rosh Hashanah celebration in Moscow that coincided with a visit by Israeli ambassador Golda Meir in the fall of 1948 (reflecting Russian Jewry's suspicious enthusiasm for the new Jewish state), as well as Israel siding with the United States' position at the UN regarding military intervention on the Korean peninsula.⁴² Thus, for example, at the behest of their Soviet handlers, the staff of the leading Jewish-American Communist newspaper unexpectedly declared in 1949 that Zionism was "Jewish bourgeois nationalism" and Israel, "a bastion of Jewish reaction," served as "a prop for Anglo-American imperialism."⁴³ At the same time, Stalin grew wary of a nascent reawakening of Jewish organizations and activities in Eastern Europe which appeared "preoccupied with Jewish history" and inclined to slander "Soviet man and Soviet reality" (, 148–149), making it suspect as a servant of "international Zionism and part of a conspiracy

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opposing socialism.”⁴⁴ Renewed vilification ended soon after Stalin’s death, which appears attributable to “liberalization processes” associated with the Yugoslavian leader Josep Tito’s influence on Khrushchev to accept the “inevitability of a showdown with Stalin’s cult.”⁴⁵ But it resumed a few years later, when Yiddish books and theater again proliferated as a result of such processes, leading to the resumption of “fierce campaigns against the Jewish religion and Zionism” (Pinkus, 1984, 151).

It is against this backdrop that Soviet actions with respect to final modifications of the ICERD’s wording should be understood. While the additional article proposed by the U.S. and Brazil would confirm that anti-Semitism was within the purview of the ICERD, the Soviet counter-proposal — offered contingent on that article’s inclusion — was provocatively designed to protect its own parochial priorities. Faced with a counter-proposal that the new article make clear that opposition to Zionism would not be affected, because it should be equated with “Nazism, neo-Nazism and all other forms of the policy and ideology of colonialism, national and race hatred,” the commission tasked with submitting the final version of the ICERD to the UNGA for a vote opted instead to drop both the American proposal and Soviet counter-proposal. But importantly, in preventing a reference to antisemitism from being explicitly inserted into the ICERD, the Soviets also took a stance that was largely consistent with common understandings of the era, that antisemitism was not a form of racism because the Jews could not be considered a ‘race.’

The key to this puzzle is similar to the quandary often pondered today regarding the recent resurgence of anti-Zionism when juxtaposed against muddled understandings of the precise nature of antisemitism, as generally formulated in the mid-twentieth century and

continuing for decades thereafter. Although it is widely recognized (at least in certain ways) as a coherent whole, the world's Jewish population was commonly perceived as a "mixed group racially" (Graeber, 1953, 268). This manifested widely-held assumptions that even while a "scientific" concept of race must be discredited as a factor in fundamental behavioral differences between population groups, because there really were none, the concept still had some validity and deserved credence. It could serve as an overarching classification system based on physical (if not intellectual or emotional) differences within humanity's shared gene pool, broadly associated with different traits, whether resulting from a mix of genetic inheritances and environmental factors or otherwise. Such differences, whether superficial or in some ways possibly substantive, were considered easily detectable between diverse populations originating from regionalized geographies.

The amount of scholarly literature on this complex topic — involving human biology, anthropology and sociology — has been vast for well over a century, and it would be foolish to declare any single point-of-view about it as the correct one. But the broader problem lies in the fact that by renouncing the credibility of "scientific racism," because it was impossible to verify in any real way through newly discovered genetic methodologies, scholars in fields of study that are less amenable to empirical data — philosophy and the social sciences, and particularly the relatively new-fangled discipline of sociology — were in search of workable concepts that explained the persistence of conflict among separately identifiable population groups. Thus, while it became obvious that "everyday racial classifications do not track meaningful biological categories,"⁴⁶ the concept of race still demanded study because of its persistent and often deeply disruptive sociological impacts,

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even though now considered devoid of, and therefore independent of, strictly biological determinants.

Without widely accepted and certainly in no way “fixed” definitions of race, racism or antisemitism, hatred toward Jews could therefore be placed within a category adjacent to conflict attributable to race, consisting of extreme ethno-religious intolerance, but not squarely within it, with race still largely understood as relating to the “immutable” characteristics of distinct, region-specific populations, reflecting hereditary continuities and “genetically informed” — if not decisive — factors (Sesardic, 2010, 160). Antisemitism could thus be categorized as hatred toward the presence of a transnational minority demarcated by unique ethnic identifiers, such as “wearing distinctive garb” in their everyday lives or “characteristically Jewish names” (Graeber, 1953, 268). But this hatred was not “racial” because it could not be considered strongly tied to physical characteristics such as skin color, facial structure, hair texture, which could be associated with other groups — whether accurately or imaginatively — such as was the case with “white Caucasians” whose origins were found in an imaginary yet still specific geography.⁴⁷ The point is relevant here because the rigid use of physical factors to define racial differences only became fully discredited over the course of the second half of the last century and, while the qualities that define what exactly is a “race” have either been dispensed with or grown less pseudo-scientific as a result, they are still relatively murky in terms of shared understandings, or even widespread acceptance, today.⁴⁸ Thus, a unifying hatred toward the Jews, even now, might be seen as an integral part of the “gross zoological racism and anti-semitism” of the Nazis, but the two hatreds — racism and antisemitism — could still be recognized and treated as complementary but not one and the same.⁴⁹

A precise chronology of such academic reconfigurations, or even an assessment of their relevance today, is all but impossible to arrive at — even though attempts to do so are still made with respect to the connection between antisemitism and racism⁵⁰ — in part because the terms, concepts and meanings in play are all inherently transitory and opaque. Nevertheless, the notion that “racial identity” can be formed even if not “based on attributes typically linked to physical characteristics like skin color,” thereby entitling members of a population with diverse physical characteristics to consider themselves belonging to a “racialized” group by virtue of “ascription (how society labels an individual), identification (how one self-identifies), and treatment (how one is treated by others),”⁵¹ has become a bulwark of modern thinking. This has allowed nearly endless and often perambulating explorations on what groups have been (or are in the process of being) racialized, what indicates their racialization, and what are the implications of their having been racialized for themselves and others.

Somewhat amazingly, this flexible, case-sensitive and highly erudite area of inquiry now lies at the heart of international law with respect to what groups could be considered subject to a regime constituting apartheid. The non-scientific acceptance of this outcome is detectable not only in the copious academic literature on the concept of “racialization” in the last several decades, but also the deployment of the term ‘racial group,’ superseding that of ‘race,’ that now permeates the wording of international conventions. It began with the ICERD, where the term appeared three times in an undefined, relatively off-handed manner⁵² and became more apparent with the UNGA’s 1974 “Apartheid Convention,” where it was used 13 times, including in the definition of “the crime of apartheid.” It was still undefined, but it thus became integral to the crime’s provability.⁵³ According to defenders

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of an expansive approach toward utilizing racialization as an analytical process, it is of “great value politically, as it offers a way for groups that have been understood and treated as inferior ‘races’ to assert and defend themselves collectively, while rejecting the biologization and inferiorization associated with ‘race.’”⁵⁴ The process of identifying racial groups since the 1970s has also become something of a thriving cottage industry in social sciences academia.⁵⁵ Thus, while the physiological foundations of race-based differences have persisted — often denoted by skin color (leading to the now widely-used concept of “colorism” as a sub-type of racism)⁵⁶ — racism (or more precisely, “racial bias” toward a “racial group”) is now susceptible to understanding and interpretation with as much malleability as deemed necessary to make it considered fair and equitable, and therefore susceptible to the imperatives of international law.⁵⁷

This broad and in some ways obscure topic may seem largely separable from the history of the UNGA's affairs being examined here because, throughout the duration of South Africa's long apartheid era, there would have been no obvious need for its use, much less close examination. That is, from the 1960s through at least the early 1990s, widely-accepted identifiers of different populations based on established concepts of racial difference did not require sociological analysis or nuanced theory. Except for a relative handful of edge cases, the outward and obviously manifested basis for all-but-unquestioned separate and unequal treatment between “Whites” and “Coloureds” would have been plainly obvious. Yet when the UNGA moved on from cursory references to racial groups in the ICERD to adopting the Apartheid convention 10 years later, the purpose of “racial group” as the numerator to the denominator of the rest of the population in question be-

came both more versatile, and more entrenched as particularly meaningful, for purposes of scope, interpretation and effect.

First proposed by the USSR, Nigeria and Guinea⁵⁸ and submitted in Russian,⁵⁹ the Apartheid convention was seen as “the ultimate step in the condemnation of apartheid as it not only declared that apartheid was unlawful because it violated the Charter of the United Nations, but in addition it declared apartheid to be criminal.”⁶⁰ However, given the plethora of actions that had been continually taken in the UNGA and by the security council regarding apartheid up to that point, member-state submissions “revealed a great variety of opinions on the need for the draft convention as such”⁶¹ and suspicions were raised that the convention was more a symbolic gesture of ongoing Soviet solidarity with newly independent, anti-imperialist African states than a practical instrument. It included a monitoring body but appointed members on it needed to be “neither independent nor expert.”⁶² It was “intended to complement the ICERD”⁶³ but the crime it defined and declared came without any ways to prosecute acts that constituted it, or enforce penalties for doing so.

Perhaps most importantly, while the Apartheid convention identified eight acts demonstrative of the “purpose of establishing and maintaining domination by one racial group of persons over any other racial group of persons and of systematically oppressing them,” it referenced them as “including” those “as practised in southern Africa.”⁶⁴ Expert legal commentators subsequently noted that this broadened the convention’s potential application to political and social conditions far beyond South Africa, regardless of the extent to which they were like or unlike it (Reynolds, 2012, 211). Through this apparent reference to South Africa’s case as an example but not a set of parameters, apartheid shifted from a subcontinental crisis resulting from an

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array of specific circumstances — the multi-century development of Afrikaner history and culture; a national economy heavily dependent on mineral extraction; the milieu of an originally isolated outpost in a lightly populated area meant to facilitate the commercial expansion of Dutch mercantilism (Brookes, 2023, xv–xviii); and a post-World War II climate of aggressive White supremacist nationalism to protect at all costs the material gains of what had long been an environmentally precarious existence — was thereupon imbued with potentially global application.

In any case, and over the long run, the Apartheid convention's potential was largely theoretical, and it is now “widely believed to be a dead letter” (Lingaas, 2015, 86), given that its monitoring function ended in 1995, once South Africa became a post-apartheid state.⁶⁵ But it set the stage for a newly internationalized crime against humanity whose many champions — now in a worldwide search for possible perpetrators — live on. And, like the ICERD before it, the convention's adoption in itself reflected a victory, whether pragmatic or ideological. For the post-colonial states in Asia and Africa, it showed them that their Communist partners were willing to protect their interests, even if their primary reasons for doing so were to combat western influence (Golan, 1988, 335–338) and maintain ideologically allied regimes in Angola and Mozambique.⁶⁶ The strategy clearly worked because the vast majority of UNGA member-states voted in favor of the convention⁶⁷ and only a relative handful either opposed or abstained.⁶⁸

Of equal if not greater significance to the value of the Apartheid convention in “instrumentalizing [the USSR's] relations with the Global South,” it helped characterize apartheid as reflective of the natural tendencies of western imperialism and colonialism, with the result being that it solidified the loyalties of “non-aligned movement”

countries during the Cold War years even while they kept their diplomatic distance from the Soviets' more affluent Western adversaries, no matter how helpful they might be in their offers of aid for much needed economic development.⁶⁹ This strategy can be traced back not just to ten years earlier, with the 1965 adoption of the ICERD, but 20 years, to the 1955 Bandung Conference, convened "to explore ways that newly independent states could navigate the Cold War bipolarity between a U.S.-led 'capitalist' bloc and the Soviet-led 'socialist' bloc."⁷⁰ In fact, Bandung may be considered the real watershed start of the era because, in its success in bringing together "leaders of countries whose combined population made up approximately two-thirds of the world's people,"⁷¹ it garnered worldwide attention and caused "Soviet theory" of its overall engagement strategy for the Cold War to change dramatically, from Stalin's "two-camp world" to Khrushchev's third "zone of peace," the recognition of which led the Soviets to embark on "a period of winning friends and influence amongst the newly independent former colonies."⁷²

The cumulative effect of such events during this quarter-century era (from roughly 1950 to 1975) is now abundantly clear a half century after it ended: the struggle against racism, especially in its most brutal, pernicious and state-sanctioned forms, must be directed against Western habits — indeed, requirements — of developing "racial group" identities that are brought into existence for the sole purpose of subjugating them to achieve imperialist objectives. The UNGA that emerged after South Africa's apartheid system collapsed, heavily influenced throughout this era by the durable coalition of member states that purveyed this messaging, might be described as the organizational equivalent of a St. George dedicated to achieving a type of victory which it can no longer redefine and from which it can no longer

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retire.⁷³ It managed to slay the primary dragon of the last century — South Africa's apartheid regime — but in the new century, what other dragon-like regimes, inflicting immense harms on otherwise helpless "racial groups," must be recognized, shunned and slain now? As it turns out, there was at least one that was readily available.

Notes to Chapter 2

¹ United Nations, "Nelson Mandela International Day, 18 July," (n.d.). https://www.un.org/en/events/mandeladay/un_against_apartheid.shtml.

² Ram C. Malhotra (Nepal), Rapporteur, "Report of the Special Committee on the Policies of Apartheid of the Government of the Republic of South Africa, Annex II - Report of the delegation of the Special Committee on the Policies of Apartheid of the Government of the Republic of South Africa on the International Conference on Economic Sanctions against South Africa, London, 14-17 April 1964," Document S/5717, May 25, 1964, 33–65, 43. <https://documents.un.org/doc/undoc/gen/n64/116/04/pdf/n6411604.pdf>. ("the South African question has now become considerably more serious and direct for the independent African States as a result of the formidable programme of militarization that South Africa has undertaken in recent years. This programme introduces a new factor into the international character of the South Africa problem.")

³ "The South African General Elections: 1994," ANC Parliamentary Caucus, August 27, 2019. <https://www.ancparliament.org.za/the-south-african-general-elections-1994/>.

⁴ Document 209, Statement by the Spokesman for Secretary-General Boutros Boutros-Ghali applauding the election process in South Africa, UN Press Release SG/SM/5282-SAF/176, 6 May 1994, In: The United Nations and Apartheid, 1948-1004, The United Nations Blue Book Series, Vol. 1 (Department of Public Information United Nations: New York) 507

⁵ UNGA Resolution 44(1), adopted December 8, 1946, Treatment of Indians in the Union of South Africa. UNGA (1st sess. : 1946) <https://digitallibrary.un.org/record/209760?v=pdf>.

⁶ Adriana Ferreira, "UN Support for Decolonization Sixty Years On," Cornell University Press, January 14, 2021. <https://www.cornellpress.cornell.edu/un-support-for-decolonization-sixty-years-on>. ("The so-called 'Year of Africa', 1960, marked the tipping point when it came to UN support for decolonization.")

⁷ Harold Macmillan, Prime Minister of the United Kingdom, used this phrase as the theme of his speech to Members of both Houses of the Parliament of the Union Of South Africa, Cape Town, on February 3, 1960. <https://web-archives.univ-pau.fr/english/TD2doc1.pdf>.

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- ⁸ The Executive Board of UNESCO (Oct. 1960) *The UNESCO Courier*. <https://courier.unesco.org/en/articles/racism>.
- ⁹ Jeremy Green, "The extractive foundations of Bretton Woods: gold, apartheid, and the racial politics of monetary order," January 8, 2026, *Review of International Political Economy*. <https://doi.org/10.1080/09692290.2025.2594477>. See also, Leiss 1965, 23. ("The United States and the United Kingdom are the states under most pressure on this complex of issues France is even stronger in its opposition to UN intervention.")
- ¹⁰ Walter Lacquer (ed.), *A Dictionary of Politics* (The Free Press: New York), 498. The term "Third World" has far less usage today but a half century ago, its meaning was well-understood, as indicated by this 1971 dictionary.
- ¹¹ Tricontinental: Institute for Social Research, "Sovereignty, Dignity, and Regionalism in the New International Order," March 14, 2023. <https://thetricontinental.org/dossier-regionalism-new-international-order/>.
- ¹² Enuga S. Reddy, "The Struggle against Apartheid: Lessons for Today's World," *UN Chronicle*, September 1, 2007 <https://www.un.org/en/chronicle/article/struggle-against-apartheid-lessons-todays-world>. ("The General Assembly, the Economic and Social Council and the Commission on Human Rights have devoted thousands of meetings to the discussions on racial discrimination and adopted hundreds of resolutions. Other UN agencies, notably the International Labour Organization (ILO) and the United Nations Educational, Scientific and Cultural Organization (UNESCO), have made significant contributions to the common effort.")
- ¹³ Leonard T. Kapungu, "Southern Africa and the Role of SADCC in Subregional Development," in *The Organization of African Unity after thirty years* (Yassin El-Ayouty, ed.) Praeger Publishers, 1994, 43–46.
- ¹⁴ Phipp I. Levy, "Sanctions on South Africa: What Did They Do?," Yale University Economic Growth Center, February 1999, http://www.econ.yale.edu/growth_pdf/cdp796.pdf, 6–7.
- ¹⁵ Ebrahim Salie, "International Pressure on Apartheid South Africa, 1980–1989", 2017. <https://learning.bishops.org.za/history/wp-content/uploads/sites/130/2020/05/International-Pressure-on-Apartheid-S-A-Edited-version.pdf>
- ¹⁶ Boutros Boutros-Ghali, "Introduction: The United Nations and Apartheid 1948–1994," *The United Nations Blue Books Series, Volume I, Department of Public Information — United Nations, New York (199)* ("The inauguration [on 10 May 1994 of Mr. Nelson Man-

delas as President of the Republic of South Africa] marked not merely the liberation of a country from racist tyranny, but the triumph of the aspiration of Africa for the total emancipation of the continent and the successful resolution of one of the gravest problems that had faced the United Nations from its very inception Attending that ceremony on my first visit to South Africa to welcome the newborn nation on behalf of the world community, I was moved — as an African and as the Secretary-General of an organization which had so resolutely supported the struggle against apartheid — by the spirit of reconciliation that the new leaders had so successfully promoted.”)

- ¹⁷ Arun Kundnani, *What Is Antiracism?: And Why It Means Anticapitalism*, Verso Books 2023. (“Apartheid could not be explained as simply the expression of age-old prejudices or hatreds: in very specific ways, it was a formation of the twentieth century. Apartheid South Africa thus posed in a particularly stark way the question of how capitalism and racism were related.”)
- ¹⁸ See also, Irwin 2013 (“The United Nations system was changed, I argue, not by apartheid but by the nation-state’s triumph in the Black Atlantic, which forced a cross-section of elites to confront self-determination’s conceptual relationship to state capacity, racial equality, and institutional interdependence.”)
- ¹⁹ Arun Kundnani, *What Is Antiracism?: And Why It Means Anticapitalism*, Verso Books 2023.
- ²⁰ International Convention on the Elimination of All Forms of Racial Discrimination, December 21, 1965, UNGA (20th sess.). <https://digitallibrary.un.org/record/660429>.
- ²¹ Summary of ICERD, UN Depository of Treaties, accessed, March 24, 2026, <https://treaties.un.org/doc/Publication/MTDSG/Volume%20I/Chapter%20IV/IV-2.en.pdf>.
- ²² David Keane, “‘Palestine v Israel’ and the Collective Obligation to Condemn Apartheid under Article 3 of ICERD,” *Melbourne Journal of International Law* 23, no. 2 (2022): 251–75, 252. <https://search.informit.org/doi/10.3316/informit.027174151311897>. (“[U]nder ICERD, a collective obligation to condemn apartheid falls on all states parties as a treaty obligation under art 3.”)
- ²³ UNGA Resolution 1761 (XVII). The policies of apartheid of the Government of the Republic of South Africa (November 6, 1962), <https://docs.un.org/en/A/RES/1761%28XVII%29>.
- ²⁴ Report of the UN Secretary-General — Advisory opinion of the International Court of Justice on the legal consequences arising from the policies and practices of Israel in the

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Occupied Palestinian Territory, including East Jerusalem, and from the illegality of the continued presence of Israel in the Occupied Palestinian Territory, December 19, 2024, 65. <https://docs.un.org/en/A/79/588>.

- ²⁵ Committee on the Elimination of Racial Discrimination, International Convention on the Elimination of All Forms of Racial Discrimination: 50 years of fighting racism. (2015). Office of the High Commissioner of Human Rights. <https://www.ohchr.org/en/treaty-bodies/cerd/international-convention-elimination-all-forms-racial-discrimination-50-years-fighting-racism>.
- ²⁶ Calder Walton, "What's Old Is New Again: Cold War Lessons for Countering Disinformation," Texas National Security Review, Fall 2022. <https://tnsr.org/2022/09/whats-old-is-new-again-cold-war-lessons-for-countering-disinformation/> ("From the 1950s onwards, exploiting racial injustice in America became a stock in trade for Soviet disinformation. According to [former senior Soviet Bloc disinformation officer and defector to the United States, Ladislav] Bittman, Moscow instructed Eastern Bloc disinformation departments to make race in the United States a 'top priority.' Amid race protests and the civil rights movement, they lacked no opportunities for inflaming and amplifying U.S. race relations."
- ²⁷ David Keane, Addressing the Aggravated Meeting Points of Race and Religion, 6 U. Md. Law Journal of Race, Religion, Gender & Class 367 (2006), 367-406, 371. <https://digitalcommons.law.umaryland.edu/rrgc/vol6/iss2/8>.
- ²⁸ "When The 1960s 'Swastika Epidemic' Came to Canada," (n.d.), Canadian Anti-Hate Network. Retrieved March 21, 2026, from https://www.antihate.ca/swastika_epidemic_canada_1960.
- ²⁹ Thomas Rid, *Active Measures: The Secret History of Disinformation and Political Warfare*, Farrar, Straus and Giroux: New York, 2020, pp. 130-31.
- ³⁰ Weiss 2017.
- ³¹ "Pravda Digital Archive," East View Information Services, December 13, 2022. <https://www.eastview.com/resources/gpa/pravda/>.
- ³² Remarks by Senator Dodd on Anti-Semitism, the Swastika Epidemic and Communism, Congressional Record - Senate, Vol. 106, Part 16, March 15, 1960, pp. 5205-5213, <https://www.congress.gov/86/crecb/1960/03/15/GPO-CRECB-1960-pt5-1-1.pdf> ("Encouraged by the reaction of the free world to the swastika incidents, the Communists propaganda apparatus had a field day. No charges were too extreme, no

language too extravagant. Pravda on January 8, for example, charged that 'this organized racist campaign had been launched as if at a signal given by Adenauer' and it said that its purpose is to 'clear the road for a wide propaganda in favor of a nazi ideology, openly fascist.'")

- ³³ Library Of Congress, and Sponsoring Body John W. Kluge Center, "The Swastika Epidemic: Jewish Politics & Human Rights in the 1960s," in Washington, D.C.: Library of Congress, -12-11, 2014. Video (transcript of lecture). <https://www.loc.gov/item/2021689625/>. ("In 1960 ...[as] news of these incidents [was published] across the world, a coalition began to form of international Jewish organizations, the Israeli Government and the U.S. officials. And, together, they launched an unprecedented effort to create a law that would ban anti-Semitism. They went to the United Nations, the Commission on Human Rights, seeking redress. And, this campaign, eventually, bore fruit.")
- ³⁴ Steven L. B. Jensen, "Lost Covenant: A Story of the Failed 1967 Convention on Elimination of Religious Intolerance," January 12, 2017, Universal Rights Group. <https://www.universal-rights.org/lost-covenant-story-failed-1967-convention-on-elimination-religious-intolerance/>.
- ³⁵ UNGA — Eighteenth Session, Resolutions Adopted On the Reports of the Third Committee. [https://docs.un.org/en/A/res/1904\(XVIII\)](https://docs.un.org/en/A/res/1904(XVIII)). See also, Eshed 2025, p. 249. On the UNGA's "main committee" structure, see generally, Permanent Mission of Switzerland to the United Nations (2017). *The GA Handbook: A practical guide to the United Nations General Assembly*. https://unitar.org/sites/default/files/media/publication/doc/un_pga_new_handbook_0.pdf.
- ³⁶ UN General Assembly - Third Committee. Social, Humanitarian & Cultural, <https://www.un.org/en/ga/third/>.
- ³⁷ UNGA Resolutions 1780 and 1781 (XVII). [https://docs.un.org/en/A/RES/1780\(XVII\)](https://docs.un.org/en/A/RES/1780(XVII)), [https://docs.un.org/en/A/RES/1781\(XVII\)](https://docs.un.org/en/A/RES/1781(XVII)).
- ³⁸ Heiner Bielefeldt and Michael Wiener, "Declaration on the Elimination of All Forms of Intolerance and of Discrimination Based on Religion or Belief — General Assembly resolution 36/55," United Nations Audiovisual Library of International Law, 2021. 2. https://legal.un.org/avl/pdf/ha/ga_36-55/ga_36-55_e.pdf, 5.
- ³⁹ John Claydon, "The Treaty Protection of Religious Rights: U.N. Draft Convention on the Elimination of All Forms of Intolerance and of Discrimination Based on Religion or Belief," 12 Santa Clara Lawyer 403, 413 (1972). <https://digitalcommons.law.scu.edu/lawreview/vol12/iss2/8>.

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- ⁴⁰ Steven L. B. Jensen, "Lost Covenant: A Story of the Failed 1967 Convention on Elimination of Religious Intolerance," 2017, Universal Rights Group, <https://www.universal-rights.org/lost-covenant-story-failed-1967-convention-elimination-religious-intolerance/>. ("It is a common misinterpretation to view the post-1945 human rights story as driven by an emphasis on civil, political, economic, social and cultural rights. In reality, the international human rights project was redefined in 1962 with racial discrimination and religious intolerance at its core.")
- ⁴¹ The proposed revision by the United States and Brazil and the counter-revision by the Soviet Union appears on p. 5 of the Report of the Third Committee, UNGA (20th sess:), Agenda Item 53, Document A/6181 (December 18, 1965), <https://digitallibrary.un.org/record/712630?ln=en&v=pdf>.
- ⁴² Palquest, <https://www.palquest.org/en/highlight/38300/ussr-and-palestine-question-1950%E2%80%931991>.
- ⁴³ Harry Schwartz, "Communists Here to Fight Zionism; Freiheit Association Apologizes for Not Embracing Stand of Ehrenburg Earlier", *New York Times*, March 31, 1949. <https://www.nytimes.com/1949/03/31/archives/communists-here-to-fight-zionism-freiheit-association-apologizes.html>.
- ⁴⁴ Izabella Tabarovsky, "Soviet Anti-Zionism and Contemporary Left Antisemitism", *Fathom Journal*, May 2017. <https://fathomjournal.org/soviet-anti-zionism-and-contemporary-left-antisemitism>.
- ⁴⁵ Svetozar Rajak, "Yugoslav-soviet Relations, 1953-1957: Normalization, Comradeship, Confrontation" (Ph.D. thesis); 2004, London School of Economics and Political Science, p. 343, <https://researchonline.lse.ac.uk/id/eprint/133506/>.
- ⁴⁶ Sally Haslanger, "You mixed? Racial identity without racial biology," In: S. Haslanger S & C. Witt (eds), *Adoption matters: philosophical and feminist essays*, 266. (Cornell University Press: Ithaca, 2005)
- ⁴⁷ A recent book addressing the construction of a "Caucasian" race and its associated myths by Sarah Lewis, *The Unseen Truth: When Race Changed Sight in America*, Harvard University Press: 2024) explores this phenomenon from the perspective of the homogenizing "racialization" of a multiplicity of otherwise distinct in many ways (culturally, linguistically, and physically) Eurasian peoples.
- ⁴⁸ E.g., "Is Antisemitism a Form of Racism?" *Anne Frank House*, (undated). <https://www.annefrank.org/en/topics/antisemitism/antisemitism-form-racism/> ("An-

tisemitism means hatred of Jews. The word first appeared in the 19th century, when classification of people into different races was considered normal But do Jews belong to a separate 'race'? Conclusion: Jews are not a race, and categorising people according to race is wrong and dangerous. Even so, some people still believe in the concept. If it is the basis for their hatred of Jews, it is undoubtedly racist")

- 49 Aurel Kolnai, *The War Against the West*, Viking Press 1938, 38. Also, regarding the ideas of "Nordicism" — that race was the basis of civilization [with the assumption] that it must therefore "be the basis of political order," see, John P. Jackson and Nadina M. Weidman, "The Origins of Scientific Racism," *The Journal of Blacks in Higher Education* (2005-05), 66–79, 50. <https://www.jstor.org/stable/25073379>.
- 50 Glynis Cousin & Robert Fine (2012) "A Common Cause: Reconnecting the study of racism and antisemitism," *European Societies*, 14:2, 166-185. <https://doi.org/10.1080/14616696.2012.676447>
- 51 Asil M. Martinez, "Is Racial Identity Ever Straightforward?," Blog of the APA, June 10, 2024. <https://blog.apaonline.org/2024/06/10/is-racial-identity-ever-straightforward/>.
- 52 Art. 1, sec. 4 addresses "the maintenance of separate rights for different racial groups" not being continued after special measures are taken to secure the "adequate advancement of certain racial or ethnic groups;" protection of certain racial groups or individuals belonging to them; and Art. 2, sec. 2 uses the term twice in relation to the taking of "concrete measures" to ensure "adequate development and protection of certain racial groups or individuals belonging to them".
- 53 International Convention on the Suppression and Punishment of the Crime of Apartheid, UNGA Res. 3068 (XXVIII), 28 U.N. GAOR Supp. (No. 30) at 75, U.N. Doc. A/9030 (1974), 1015 U.N.T.S. 243, entered into force July 18, 1976. https://www.un.org/en/genocideprevention/documents/atrocities-crimes/Doc.10_International%20Convention%20on%20the%20Suppression%20and%20Punishment%20of%20the%20Crime%20of%20Apartheid.pdf.
- 54 Adam Hochman, "Racialization: a defense of the concept," *Ethnic and Racial Studies*, 42(8), 1245–1262, 1245-46. <https://doi.org/10.1080/01419870.2018.1527937>.
- 55 Steve Garner, *Racisms: An Introduction*. SAGE Publications Ltd, 2010), 19. ("The concept of racialisation is based on the idea that the object of study should not be 'race' itself, but the process by which it becomes meaningful in a particular context. In fact, racialisation

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has now become one of the key ways that academics make sense of the 'meanings of race'."

- ⁵⁶ Martin Lund (September 10, 2024), "A Prehistory of Scientific Racism." The MIT Press Reader. <https://thereader.mitpress.mit.edu/a-prehistory-of-scientific-racism/>. ("In the 1795 third edition of his pamphlet 'On the Natural Variety of Mankind,' German anthropologist Johann Friedrich Blumenbach ...skin color played a large role in what was considered the science of race. He included skin color in his taxonomy and ranked white skin the highest, as belonging to the 'oldest variety of man,' although skin color was ascribed to climate and experience rather than innate qualities, and 'Caucasian' whiteness was extended as far as the Ural Mountains and Ganges.")
- ⁵⁷ An example of the trend toward empirical evaluation of racial bias as a social phenomenon can be found in R. Neel and J.R. Shapiro, "Is racial bias malleable? Whites' lay theories of racial bias predict divergent strategies for interracial interactions," *Journal of Personality and Social Psychology*, May 7, 2012, 103(1), 101–120. <https://pubmed.ncbi.nlm.nih.gov/22564011/>.
- ⁵⁸ Newell M. Stultz, "Evolution of the United Nations Anti-Apartheid Regime", 13 Human Rights Quarterly 1–23 (1991), 13
- ⁵⁹ Guinea and Union of Soviet Socialist Republics: draft of a Convention on the suppression and punishment of the crime of apartheid (28 Oct. 1971) UNGA AC.3/L.1871.
- ⁶⁰ John Dugard, "Introductory Note, Convention on the Suppression and Punishment of the Crime of Apartheid, UN Audio Visual Library of International Law, August 2008. <https://legal.un.org/avl/ha/cspca/cspca.html>."
- ⁶¹ S. Azadon Tiewul, "Apartheid: Steps Toward International Legal Control, 119" 6 ZAM. Law Journal 101, 119 (174)
- ⁶² Victor Kattan & David Johnson, "The Crime of Apartheid beyond Southern Africa: A Call to Revive the Apartheid Convention's 'Group of Three,'" EJIL: Talk!, Blog of the European Journal of International Law, September 21, 2023, <https://www.ejiltalk.org/the-crime-of-apartheid-beyond-southern-africa-a-call-to-revive-the-apartheid-conventions-group-of-three/>. See also, Dugard 2008 ("Although consideration was given in 1980 to the establishment of a special international criminal court to try persons for the crime of apartheid (E/CN.4/1426 (1981)), no such court was established.")
- ⁶³ Max Du Plessis, "International Criminal Law: The Crime of Apartheid Revisited," 24 S. African Journal of Criminal Justice. 417–428, 4220 (2011).

⁶⁴ Apartheid Convention, Art. 1, sec. 2: “[T]he term ‘the crime of apartheid’, which shall include similar policies and practices of racial segregation and discrimination as practised in southern Africa, shall apply to the following inhuman acts committed for the purpose of establishing and maintaining domination by one racial group of persons over any other racial group of persons and systematically oppressing them”

⁶⁵ Kattan & Johnson 2023.

⁶⁶ CIA Directorate of Intelligence, “Soviet Intentions and Activities in Southern Africa,” November 25, 1986 <https://www.cia.gov/readingroom/docs/CIA-RDP86T01017R000505430001-3.pdf>, 2.

⁶⁷ Multilateral Treaties in respect of which The SECRETARY-GENERAL Performs Depositary Functions — List of Signatures, Ratifications, Accessions, etc. as at 31 December 1974, 102. <https://treaties.un.org/doc/source/publications/MTDSG/1974-english.pdf>.

⁶⁸ Dugard 2008.

⁶⁹ Drachewych, O. (4 Mar. 2025) The Comintern and the National and Colonial Question: Reconsidering the Roots of Soviet Anti-Imperialism and Anti-Racism. The Jordan Center for the Advanced Study of Russia at New York University. <https://jordanrussiacenter.org/blog/the-comintern-and-the-national-and-colonial-question-reconsidering-the-roots-of-soviet-anti-imperialism-and-anti-racism>. (“Through the Comintern, the communist movement developed many foundational principles of what would become Soviet anti-imperialism and anti-racism It is possible that Soviet support for anti-apartheid or the introduction of leftist ideas into civil rights movements in the United States would not have taken place without the forum the Comintern offered.”) The author is a Canadian academic who specializes in “the history of the Soviet Union, international communism, and global history and international relations in the twentieth century.” <https://www.kings.uwo.ca/academics/faculty-info/member-profile/?doaction=getProfile&id=odrachew>.

⁷⁰ B.N. Mamlyuk, “Decolonization as a Cold War Imperative: Early Soviet International Law as a Precursor to Bandung,” SSRN Electronic Journal, 2016. https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2601524. This article is a “preprint” version of a chapter in a 2016 book cited in the next footnote, which (for unknown reasons) does not appear to make precisely the same point.

⁷¹ Luis Eslava, Michael Fakhri, and Vasuki Nesiah, "The Sprit of Bandung," 3–32, 4, in *Bandung, Global History, and International Law: Critical Pasts and Pending Futures*, Luis Eslava, Michael Fakhri, Vasuki Nesiah (eds.), Cambridge University Press 2017.

⁷² Mayluk, 81.

⁷³ Cf., Kenny Minogue, *The Liberal Mind*, Vintage Books, 1968, 1.

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In the late summer of 2001, over a weeklong period ending a few days before the 9/11 attacks in the United States, the UN held its third “World Conference Against Racism” in Durban, South Africa, known (to distinguish it from a 2009 conference held to review its progress) as “Durban I.”¹ Attendees came expecting “a neutral platform” in which they would hear about and discuss “sensitive issues that world leaders were grappling with” relating to “the social construction of race and citizenship; the socio-economic and political forces that drive racism and inequalities; organized responses to cultural diversity; and the impact of various types of public policies on race relations.”² Meetings and presentations on the conference agenda did not include discussions relating specifically to the ongoing challenges between Israel and Palestine — that is, the by then exhaustively examined “Palestine Problem”³ — nor were they expected to cover what did, or did not, constitute apartheid. That concept had already been codified into international law for a third time when the UNGA voted a few years earlier to ratify the Rome Statute — which established it as a crime against humanity that could be prosecuted by the then newly established International Criminal Court — in 1998.⁴ However, the third WCAR is now often remembered today precisely because of its effect on the “Palestine problem”, due to what occurred at a large, boisterous NGO forum held during the week preceding it.

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Conducted in a nearby facility and “encouraged and facilitated by the UN,”⁵ the NGO forum published its own concluding “Declaration” — in a layout similar to that of an official UNGA resolution — in which Israel’s policies vis-à-vis Palestinians were featured in a separate section (¶¶160–165), although also covered elsewhere.⁶ Declaring that “this alien domination and subjugation with the denial of territorial integrity amounts to colonialism, which denies the fundamental rights of self-determination, independence and freedom of Palestinians” (¶161) and pronouncing a need to “end the Israeli racist system including its own brand of apartheid” (¶98), the statement also recognized that the “targeted victims of Israel’s brand of apartheid and ethnic cleansing methods have been in particular children, women and refugees and [it must] condemn the disproportionate numbers of children and women killed and injured in military shooting and bombing attacks” (¶161). As one participant noted, such pronouncements made the forum a success because they deepened Israel’s diplomatic isolation even while the WCAR itself failed to translate that isolation into official action.⁷

In Durban, we were part of the Arab group. During the first week, we worked within the forum of NGOs and civil society organizations. The governmental conference was in the second week. The Arab group managed to get everything it asked for and suggested included in both the NGO forum and the final document it issued The wording and articles ...went so far as to describe Israel and the Palestinian case as a case of ‘genocide’ and ‘ethnic cleansing,’ Zionism as a racist movement, Israel as the last apartheid regime in the world, etc. Thus the media was drawn to the Palestinian issue to the point that the Palestinian cause became the main issue at Durban. In the second week, in the governmental document, there was serious back-tracking from the first document to the extent that

there was no condemnation of Israel's policy, even on the issue of the Occupation, or any demand for the resolutions of the UN itself concerning the Occupation to be implemented.

Israel, which knew what to expect based on the agenda of an earlier regional "preparatory committee" meeting to which it had not been invited, attended Durban I but like the United States, it withdrew once it saw the NGO forum's developments unfold without apparent concern by other member-state delegations. Other attendees were also generally aware that the NGO forum was being used "to demonize Israel ...casting doubt on whether there was a place for it in the community of nations,"⁸ but this was dismissed afterward by a former UN official because "only a minority of groups was guilty of what should be considered hate speech." As for the American withdrawal, while unfortunate, this was attributed to "an aggressive lobby from sectors within the Jewish-American community."⁹ Numerous NGOs from Central and Eastern Europe protested the forum's statement, with one noting that it contained "deliberate distortions" and was "extremely intolerant, disrespectful and contrary to the very spirit" of the WCAR.¹⁰

For them and many others, watching a gathering of member-state delegations from around the world be overshadowed by NGOs "on the sidelines" who had exhorted them to address "Israeli racism"¹¹ was a sobering moment.¹² But to many UN officials, Durban I was a success and the kerfuffle over anti-Israel agitation was simply a distracting irritant to "an exhausting, exhilarating and difficult nine days and nights in Durban that ended with a breakthrough agreement."¹³ A darker story nonetheless emerges from what happened both before and after Durban I. In February 2001, as some regional delegates prepared for the discussions there, they considered how best to showcase the conclusions of the Report of the Asia Preparatory Committee

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Conference.¹⁴ As developed at their pre-conference meeting — held in Tehran and without Israel being offered the opportunity to participate — their consensus statement called for “the cessation of all the practices of racial discrimination to which the Palestinians and the other inhabitants of the Arab territories occupied by Israel are subjected.”¹⁵ Afterward, NGOs that embraced the statement and participated in the WCAR NGO forum launched what came to be known as the “Durban Strategy,”¹⁶ geared toward accelerating global outrage against Israel through the same boycott tactics deployed in preceding decades against South Africa.¹⁷ The words of Canadian legal scholar Irwin Cotler captured the earthquake but not its aftershocks:¹⁸

What happened at Durban was truly Orwellian. That which was to be the first international human rights conference of the 21st century ...turned into a conference which indicted Israel as the meta-human rights violator. A conference that was to commemorate the dismantling of South Africa as an apartheid state turned into a conference calling for the dismantling of Israel as an apartheid state.

This turn of events was neither spontaneous nor left to happenstance. Rather, with the recently ratified and soon-to-be entered into force Rome Statute, Israel's enemies were now galvanized to make apartheid the iconic centerpiece of a far-reaching demonization strategy, reserved solely for the world's only Jewish-majority state and intended to associate it with the worst memories of official, state-mandated racism. This depiction was designed to not only make modern Israel synonymous with South Africa's apartheid era, but it also delivered an ipso facto guilty verdict on a fully-formed — that is, with enforcement mechanisms, which were previously lacking — “crime against humanity.” The key sponsor of this project was Iran, which had used much of the 1990s to recruit, train and deploy proxy forces

against Israel as well as strengthen its military,¹⁹ to counter what it viewed as the threat of a “political negotiated process in the Middle East between Israel, its Arab neighbors and the Palestinians, inaugurated at the Madrid Conference in October 1991.”²⁰

Having planted the seed for a resurgent front against Israel at Durban I, Iran sought to nurture its resulting fruit further at “Durban II” in 2009, a conference held in Geneva as a follow-up to discuss the UNGA’s progress since the 2001 WCAR. With the recently formed (2006) UN Human Rights Council (HRC) now at the helm,²¹ Durban II (which actually took place inside the HRC’s offices) was chaired by Libya and vice-chaired by Cuba, with Iran having a seat on the organizing committee.²² The worm of Israel hatred was in fact now prepared to start devouring the fruit, resulting from a near decade of coordinated agitation, beginning with a “fierce outburst” by Iranian president Mahmoud Ahmadinejad at the opening plenary session.²³ This was promptly downplayed by one European NGO “as a concession to hardliners who wanted [him] to recant his recent semi-favourable responses” to the recent “outreach efforts” of the new American president, Barack Obama.²⁴ But while Ahmadinejad’s speech was also dismissed by the HRC high commissioner as simply “partisan political rhetoric,”²⁵ his words left no real reason to doubt Iran’s future course of action. It was a siren call to its growing list of proxy forces in the region, and their Western supporters, to join arms in the long-term mission of bringing about Israel’s eventual downfall.²⁶

[G]lobal Zionism is the complete symbol of racism, which with unreal reliance on religion has tried to misuse the religious beliefs of some unaware people and hide its ugly face. But what should be seriously considered are the goals of certain super-powers and those in possession of major interests in the world; those who try their best through economic power and political

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influence and wide media means, to lessen the crimes and ugliness of the nature of the Zionist regime. [W]e should try to put an end to the misuse of international means by the Zionists and their supporters. And by respecting nations' demands, we should motivate the united governments to eliminate this clear racism and step on the path of reforming international relations and mechanisms with courage.

Such language was a far cry from eight years earlier at Durban I, when the UN High Commissioner for Human Rights at the time (Mary Robinson, former president of Ireland) struck an optimistic note about the opportunities presented by the WCAR, while adding how "pleased" she was that "everyone understands that there can be no return to an issue settled ...the former Zionism-racism problem."²⁷

In fact, that "former" problem, never truly laid to rest by UNGA Resolution 46/86 (1991),²⁸ which rescinded Resolution 3379, was now completely resurrected, assuming it had ever passed away at all. Unusually entered on the UNGA record without vote in the form of a single conclusory sentence²⁹ and appearing to be the only time one UNGA resolution ever revoked another,³⁰ this nearly 20-year old step away from UNGA-approved Israel vilification had by then long been forgotten or at most remembered as an expedient tactic, not a change-of-heart reality.³¹ It was recognized by informed observers at the time of its passage as a way to remove an impediment to Israel's participation in the Madrid peace conference, jointly organized by the U.S. and newly post-Communist Russia to resolve the "first intifada" that began in 1987. That conference succeeded as a prelude to the start of the Oslo process that continued throughout most of the 1990s, through the Rome Statute's ratification and up to the last major agreement in that process (the Wye River Memorandum), both occurring in 1998. Now, nearly ten years later, the Israel-South Africa apartheid analogy

emerged in full force, led by the renowned public intellectual and English literature professor Edward Said,³² Francis Boyle (a senior advisor to the PLO on international law issues during the Oslo negotiations)³³ and Norman Finkelstein, a rising Jewish-American academic who had already labeled Israel as “diabolical”³⁴ but had not previously compared it to South Africa. At this point, however, he proclaimed that he had always known that the purpose of the Oslo process was to transform Palestine into a “Bantustan”:³⁵

Like the South African Bantustans, the fragmented Palestinian entity resulting from the Oslo process will no doubt eventually be granted statehood. And like the Bantustans, it will be a state in name only All the Bantustans won was the right — in the words of one dissenter — to ‘police themselves and administer their own poverty’. This is also the only right Palestinians can expect to win under Oslo.

In such circumstances, it can hardly be seen as surprising that both Durban I and II are now widely remembered not as exercises in careful diplomacy but as public relations disasters in terms of their impact on perceptions of the integrity of the UNGA’s humanitarian mission. They were bookends for an all but preposterous decade in the human rights field, when what were presented as lofty steps forward in how best to deal with the scourge of racism were at least cancelled by an equal number of steps back, as UNGA member-states allowed a well-coordinated re-launch of an old national mugging to take place under their noses. A remarkably all-enveloping “state doctrine” of racism that had been transparently and officially embraced in South Africa was now repurposed as a house of canards erected solely so that it could be applied to Israel. This was the beginning of a long-term project of finding a way to make orchestrated moral outrage toward Israel “stick” even though it was by then a quarter-century old, dat-

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ing back to Resolution 3379, and apparently was seen as having lost some momentum by virtue of the ongoing 1990s Oslo negotiations. As scholars Noura Erakat and John Reynolds saw it, this was “mission accomplished” for both state and non-state actors that had used both conferences expressly for this purpose:³⁶

The controversy which engulfed the UN's 2001 Durban anti-racism conference was precipitated by the insistence of social movements from around the world on calling Israel out as an apartheid state. This was a political and moral argument to challenge institutionalised racism against Palestinians in the context of global anti-racist action. The anti-apartheid framework became increasingly central to political organising and global solidarity through the Palestinian BDS call and initiatives like Israeli Apartheid Week. More recently it has informed renewals of Black-Palestinian solidarities and the Black Lives Matter demand for divestment from apartheid Israel. While Palestinians had diagnosed and detailed Israeli apartheid conditions for many decades prior, the concomitant international legal arguments had only started to be developed in the 1990s by individual scholars and Palestinian rights organisations.

In short order, analogies between 20th century South Africa and 21st century Israel proliferated, not only in the knowledge production by academics but also, and just as importantly, in the propaganda production of activists. Its champions in that less erudite world was to cause controversy and commotion from the start, not clarity, as exemplified by Stop the Wall, a so-called “Palestinian grassroots Anti-Apartheid Wall Campaign.” Its introductory pamphlet explained “why the term apartheid ...is a necessary tool for organization and mobilization, laying out the goal of turning Israel into a pariahby conjuring up a “public outcry.””³⁷

Demands were soon formalized that Israel be treated no differently than apartheid South Africa and therefore subjected to concerted isolation on a global basis through economic, cultural, academic and political boycotts. Thus, in 2005, a loose, single-purpose amalgam of “Palestinian civil society” groups — comprised of NGOs funded mainly from external sources and controlled by political elites with “almost unlimited powers within their organisations” (Shafi, 2004, 5) — launched “BDS”, a “Call for Boycott, Divestment and Sanctions,” describing it as “inspired by the struggle of South Africans against apartheid.”³⁸ Even some Israeli political leaders accepted this positioning. In November 2007, after issuing a joint statement with the PLO’s Arafat at the close of the Annapolis Conference but facing rising dissatisfaction over his leadership at home amidst the violence of the second intifada,³⁹ Prime Minister Ehud Olmert was reported as saying that if the Oslo process collapsed, “Israel would face a South African-style struggle for equal voting rights.”⁴⁰ Peter Beinart, a Jewish-American professor who has long embraced the cause of “Palestinian freedom”⁴¹ joined in as well, writing that when Vice President Hillary Clinton “sped through the West Bank” in 2009 from Jerusalem to Ramallah to meet with Palestinian leaders, one aide looked out the window and felt like “my god, you crossed that border and it was apartheid.”⁴²

Within a few years, the analogy gave way to expert assessments that it was more than just that, and that apartheid could in fact be established based on the dictates of international law conventions and treaties. In 2013, South African law professor John Dugard co-authored a paper that offered a detailed analysis of this position (Dugard and Reynolds, 2013). A former UN Special Rapporteur on “the human rights situation in the Occupied Palestinian Territory” from 2001 to 2008 and an admirer (along with Noam Chomsky)⁴³ of the

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Jewish anti-Zionist scholar Norman Finkelstein,⁴⁴ Dugard and his co-author John Reynolds — a professor who had “worked for a number of years in the West Bank for Palestinian human rights organisation Al-Haq”⁴⁵ — offered a lengthy interpretation of the Rome Statute that they concluded proved that its criminalization of apartheid could easily be applied to Israel. Thus was born, for all intents and purposes, the Israeli-specific instantiation of apartheid as a crime against humanity.

Even so, for at least two reasons, the issue is more complex than the roar of approval from ideology-driven NGOs, or the stamp of authenticity from partisan legal experts, would suggest. First, the use of the phrase “racial group” in the Rome Statute — as noted earlier, carried over from the ICERD and the Apartheid Convention — must be understood as a foundational element in the narrative. Under the Rome Statute’s more sophisticated definition of apartheid, the conduct at the heart of the crime must be committed knowingly “in the context of an institutionalized regime of systematic oppression and domination” but still, this involved what was being done by “one racial group over any other racial group or groups.”⁴⁶ This must not have seemed to Dugard and Reynolds as that high of a bar to meet, given that “racialization” — while viewed by some scholars as an inherently subjective analysis — is meant to be assessed precisely when this sort of practical assessment needs to be considered in a “historically specific” process (Omi and Winant, 1994, 64). But as also noted in the prior section, this still requires “defining precisely what is meant by racialization,” which at least some more cautious scholars acknowledge “can be a daunting task, let alone identifying how, when, where, why, and under what conditions it operates.”⁴⁷

Second, a finding that Palestinians constitute a racial (that is, “racialized”) group requires further consideration in a location-specific

setting which, in this case, must begin with assessing how laws are applied and actions taken by Israelis (both citizens and authorities) in areas deemed by the UNGA (and nearly universally acknowledged) to be “occupied” within the meaning of the Hague Convention.⁴⁸ Much to the consternation of many, some locales (almost all within those identified as Area C in the Oslo Accords) are now interspersed with Jewish communities established with Israeli government approval (pending their final status determination, presumably amicable enough to allow them to continue). These two types of communities — either Israeli Jewish or Palestinian Muslim (Christian communities are now below 2% of West Bank residents)⁴⁹ — are obviously entirely distinct. But this too does not require they be viewed as racial groups vis-à-vis one another, much less that their relationship is one of systematic apartheid, because in all areas, the impossibility of intermingled communities reflects both Israeli law and a strong Palestinian preference (through lack of any supporting procedures) not to support any sort of integrated environments. In other words, the fact that these two populations remain segregated in this case, in and of itself, cannot validate the need for a racialization analysis when both sides have, across their long relationship, manifested a clear preference (at least outside what is colloquially known as “Israel proper”) to maintain separate lifestyles that are fully independent of the other.

On a more ad hoc basis, such a state of affairs is not all that uncommon across the MENA region and is often broadly labeled — although perhaps also unfairly in some cases, because it is simplistic and overly reductive — as “sectarianism” (Makdisi, 2017). This phenomenon may indeed apply to how Israeli settlers interact with Palestinians in what is widely known as “the West Bank,” and for scholars such as Ussama Makdisi, it may indeed be true that there, rival “sectarian outlooks, ac-

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tions, and thoughts ...[can be discussed] in a manner similar to how one would talk about racial (and racist) outlooks, actions, and thoughts in the United States” (Makdisi, 2017, 4). But even if one side of this “dialectic” garners sympathetic supporters because it is considered “local” whereas the contrasting side is “foreign” (as Professor Makdisi has consistently elaborated upon throughout his career), the “complex, constant, and unequal relationship” (, 10) between them does not always mean that one side is invariably the racist oppressor and the other is racially oppressed. There are, for example, villages within shouting distance of each other in southern Lebanon where residence is based on different religious identities (Christian or Muslim) and, as a result, they have virtually nothing to do with each other, mainly due to long-held hostilities or fears for personal safety, with the Christian villages usually at a power disadvantage relative to the larger Muslim villages.⁵⁰ But such resulting population zones are seen as having been politically engineered, or are the ineluctable byproduct of ethnic or religion-based spheres of influence, natural preferences for living within what one considers one’s own community should not automatically trigger the necessity of undertaking a full-blown racialization analysis.⁵¹

There is also a third reason why a racial group finding is inappropriate if meant to establish that apartheid is being inflicted upon Palestinians. In South Africa, the system was constructed within a unified state that had unilaterally chosen to demarcate arbitrary “homelands” or “townships” — derisively but accurately labeled as “bantustans” — to meet its internal economic and social needs, but without any expectation that they would someday become eligible to obtain any degree of “self-determination.”⁵² But unlike the situation in the Palestinian territories, enforced limitations on population movement within South Africa clearly took place inside a unitary nation-state entity, which uni-

laterally pretended to grant some of its inhabitants “local” rights for purposes of precluding their exercise of rights more broadly. Such a situation could not be any further removed from the UNGA’s continual involvement in the creation of a standalone and fully independent “State of Palestine” since its inception, with the ongoing involvement and support of national governments around the world. Juxtaposing that with the frustrations felt by Palestinians for their lack of such a state, even if they fairly believe its natural development has been willfully stunted and suppressed by Israelis, one difference should be abundantly clear: finding a path toward their eventual national autonomy is not the problem that prosecuting Israelis for apartheid crimes is meant to solve. That is, assuming that they may still achieve a separate nationality (and in some respects they already have, given Palestine’s recognition as a state by many other states), their ultimate success is not dependent on addressing the purportedly racist (and therefore internal) actions of citizens of another state but instead resuscitating a process toward achieving a viable diplomatic (and therefore external) relationship with that state.

Taking another angle on why tensions between Israelis and Palestinians cannot be understood as a purely “racial” issue, another highly impactful factor that has plagued the continuously troubled status of the Palestinian territories relates to the looting of the public funds of the Palestinian Authority which, together with a “bipolar system” that splintered and factionalized its political alliances — even while all purport to “represent democratic and secular elements [within the] society” (Shafi, 2004, 10) — has made it impossible for nascent public institutions to deliver essential services (Samuels, 2005). This phenomenon has continued since the Palestinian Authority’s inception and notwithstanding tremendous inflows of international aid, has had

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state-formation crushing implications.⁵³ Nonetheless, the duplicity of Israel, due to its racism, is imputed to be the sole cause of Oslo's eventual failure irrespective of the stunning levels of corruption of Palestinian leaders and public figures who have failed to uphold their end of the "two-state solution" bargain: developing a long-term process for building a viable state of their own. A more balanced assessment of this outcome, and the failed "risk" taken on the Palestinian side which ultimately enervated its chances for long-term positive results, was noted in passing by a Harvard psychology professor in 1997 (Kelman, 1997, 194):

For the Palestinians, an agreement that did not guarantee an independent Palestinian state at the end of the interim period ...was highly risky. They had to place a great deal of trust in the dynamics of the negotiation process, which Arafat seemed prepared to do. What made it possible for him to accept the risk were two features of the Oslo accord: the territorial base and the early empowerment of the Palestinian Authority Early empowerment assured the Palestinian leadership that they could immediately begin the process of *establishing control and building pre-state institutions* (emphasis added).

This may seem a tangential consideration nearly thirty years after the hopes for the Oslo process began fading and more than twenty years after Yasser Arafat's death, but the problem has been ongoing and reveals the lacuna between Palestine's fragmented and fragile political reality (especially the dichotomy between "Islamist" and "secular" power bases)⁵⁴ and whatever on-the-ground conclusions might be reached by taking a look around and noticing a marked divergence between the relative levels of prosperity between Jewish and Arab communities in the territories. Notwithstanding the gut reactions (as reported by Peter Beinart) of a member of Hillary Clinton's en-

tourage in 2009, this divergence cannot automatically trigger applying a paradigm of one group having undergone a racialization process due to the presence of the supremacist “Other”, thereby making it susceptible to oppression. True, this concept has now been deeply explored by sociologists and political theorists examining the basis of racial tensions in diverse national societies. But their analytical model deals with foregrounding “the important justice-based goal of keeping issues of social inequality in the forefront of our thinking about such groups” (Blum, 2010, 304), not on failed co-existence negotiations that have soured even further due to the constant exacerbation of internal tensions, whether due to ideological chasms, random violence or purposefully violent “resistance” or “failure-to-launch” state institution building.

Turning to the international law aspects of this overall situation, also of possible relevance is a decided case involving the scope of authority of the Committee on the Elimination of Racial Discrimination (CERD). The CERD is empowered by section 8 of the ICERD to handle cases between member states brought before the International Court of Justice (ICJ) relating to racially discriminatory treatment of residents. But in a 2021 case between Qatar and the UAE, the ICJ rejected a position taken by the CERD and ruled that the ICERD did not extend to claims made by Qatar alleging “nationality-based discrimination.”⁵⁵ Therefore, a “racial group” finding cannot be bypassed simply because Israelis are residing in areas considered by the UNGA to be “occupied Palestinian Territories” and are interacting in allegedly illegal ways with all other residents who are not Israelis. This ruling is consistent with a 2007 ICJ ruling involving the Genocide Convention, which is similar in its scope of protection to the ICERD in its requirement that claims can only be brought on behalf of a specified group of individuals consisting

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of a substantial number of that group (ICJ 2007 Ruling, 124, ¶193).⁵⁶ Moreover, the ICJ has also noted that meeting the “group requirement” does not always depend on the “substantiality requirement” alone, although it is “an essential starting point” (ICJ 2007 Ruling, 127 ¶200). And yet, rather than assess whether Palestinian Arabs all belong to one all-encompassing “racial group” or whether a substantial number within that group is actually being subjected to apartheid, these definitional prerequisites are routinely glossed based solely on a presumed oppositional relationship with all Israelis, even by the ICJ’s current president, Lebanese former politician, diplomat and jurist Nawaf Salam.⁵⁷

In re-examining racialization as the process by which a racial group is formed, it is also noteworthy how widely agreed upon the concept is in academic circles as based on the ground-breaking, yet also in some ways strikingly ambiguous, expostulation of its core features by American anthropologists Michael Omi and Howard Winant in the early 1990s.⁵⁸ In their book *Racial Formation in America*, still widely taught after its initial publication in 1989, these two scholars conceived of it as a segmentation process by which a sub-population within a specific social organization that is national in scope (in their case, the United States) becomes “racialized” by the actions of more dominant groups exercising economic, social and political power over it. This is hypothesized to result in the sub-population’s subjugation within a racial context, but even their analysis seems uncertain of how and when a racialized consciousness emerges or what exactly its ramifications are when manifested (Omi and Winant, 1994, 138):

We have approached race as a phenomenon whose meaning is contested throughout social life. Race is a constituent of the individual psyche and of relationships among individuals; it is also an irreducible component of collective identities and social structures. In American history, racial dynamics have

been a traditional source both of conflict and division and of renewal and cultural awareness. Race has been a key determinant of mass movements, state policy, and even foreign policy in the United States. Racial meaning systems are contested and racial ideologies mobilized in political relationships.

Nonetheless, this approach treats the overall process of racial group formation — which may or may not be tied to conventional understandings of race as based on obvious physical differentiators between oppressed and oppressor groups — as “a fundamental organizing principle of social relationships” within the country where it takes place (, 66). Any inquiry into whether the process has in fact occurred in a particular case necessitates a location- and population-specific situational analysis that presumably cannot extend to any and all populations or social or political power dynamics within that country. Rather, according to Omi and Winant’s thinking, racial differences are best understood as “a fundamental axis of social organization ...that cannot be subsumed within a supposedly more fundamental category” that is not biological in origin (, 13), thereby accentuating that both the “fundamentalness” of the resulting racial group, and the singularity of the “social organization” in which its racialization process unfolded, must be considered separate aspects that are both essential to the analysis.

This thinking is not altogether easy to parse, especially because it is offered as a byproduct of how the formerly “dominant paradigm of ethnicity, the centerpiece of liberal racial politics, fell into disrepute among radicals” because of the perceived insufficiency of the “explanatory power and political efficacy of the ethnicity perspective” (, 139). But what should be clear is that before a court decides to undertake an inquiry into the presence of a racial group, as it chose *not* to do in the Qatar vs. UAE case, the ICERD’s provisions barring racial discrimination and apartheid, as well as the Rome Statute’s criminal-

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ization of apartheid, can only be considered if brought by or on behalf of individuals (not states) belonging to the impacted racial group. This is especially true because as a crime against humanity, the Rome Statute can only be used to prosecute against individuals.⁵⁹ The issue then becomes what enables a racialization analysis relating to all Israelis against all Palestinians based on consideration of them as separate racial groups as opposed to separate nationalities?

Support for the conclusion that such an analysis is not possible can be derived from their mutual desire not to share citizenship in a single “binational” state.⁶⁰ And yet, as ICJ President Salam suggested in his 2024 declaration⁶¹ and professors Reynolds and Dugard concluded in their 2013 paper, because “Jews and Palestinians constitute distinct ‘racial groups’ for definitional purposes,” a finding of apartheid is possible and need not be limited to “a narrow construction of race,” with that “crucial preliminary question [having thereby] been met” (Dugard and Reynolds, 2013, 885–889). In effect, their relationship could thus be considered equivalent to a social utilization of the concept of race “to organize and distort perceptions of the world’s various populations,” even though their differences did “not sit within traditional conceptions of ‘race’” (, 887) and arose entirely outside a purely domestic (that is, intra-national) setting.

In so doing, this jurist and these professors have collapsed all differences between “the world’s various populations” into an exercise that can ascertain a state of discrimination between them, even though they have no shared obligations as members of the same national society. This turns any human rights inquiry relating to racism and racialization on its head, changing it from societal situations relating to a country’s sub-populations into an issue with explosively broad, international ramifications. If it is possible to criminalize on

racial grounds the existence of any conflict between nations whenever one side is deemed stronger and the weaker side alleges it is forced to act against its will because it was “racialized” by the stronger side, what need is there for laws pertaining to the conduct of war or international relations, as the stronger side will always be in the wrong and the weaker in the right? This could have been what the ICERD, the Apartheid Convention, or the Rome Statute intended and the very fact that no dispute brought on such grounds has ever been submitted to the ICJ or ICC for briefing reflects that it was not. In fact, the WCAR Declaration and Programme of Action from Durban I, addressing “Victims of Racism, Racial Discrimination, Xenophobia and Related Intolerance,” makes this clear. In its sole use of the phrase “racial group,” it states that all UNGA member-states must recognize “the effect that discrimination, marginalization and social exclusion have had and continue to have on many *racial groups living in a numerically based minority situation within a State*,” noting that all such groups should enjoy “all human rights and fundamental freedoms without distinction and in *full equality before the [presumably singular] law ...[with] respect of employment, housing and education with a view to preventing racial discrimination*.”⁶²

A final related issue is whether Israeli policy towards Palestinian communities outside its borders is contrary to the ICERD’s admonition against “racial segregation,” which requires fair and equal treatment of a country’s inhabitants. This issue is covered above but only as an indicator of whether a racial group can be found to exist. Outside of that, it that has not been codified as a “crime against humanity” or even specifically recognized as a crime under international law. But in a 2023 case in which the UNGA requested an advisory opinion from the ICJ,⁶³ the issue presented was whether Israel had violated Palestinian

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human rights by enacting “legislation and measures [that] ...maintain a near-complete separation in the West Bank and East Jerusalem between the settler and Palestinian communities.” The ICJ advised that it had, referring to the ICERD’s condemnation of “racial segregation and apartheid” in Article 3. But it did not specify whether its finding was based on both or either of these prohibitions, leading to interesting “differences of views on the bench.”⁶⁴ Rather than assert, as has one scholar who is sympathetic to Palestinian concerns has done, that the ICJ “made an implicit apartheid finding going beyond segregation,”⁶⁵ it seems more likely that the ICJ chose explicitly not to address that issue at all. Instead, it appears to have found such separation is reflective of “racial discrimination” because the concept’s breadth covers any “distinction, exclusion, restriction or preference based on race, colour, descent, or national or ethnic origin” (ICERD, Art. 1, sec. 1). It could also have fairly assumed that it had not been asked to opine on whether apartheid — as a crime against humanity — had occurred because any such finding would have depended on a “subjective element” to commit the crime that was not factually in the record before it and therefore beyond its purview.⁶⁶

In sum, given the partisanship of several of the scholars who have examined the subject, their views — in and of themselves — should be seen at most as the instantiation of a “3.0” iteration of the crime of apartheid, with the “1.0” version consisting of apartheid as practiced by South Africa before 1994 and the “2.0” version consisting of its internationalization as a crime under the Apartheid convention. This latest updated version appears mostly designed as a receptacle for the outrage generated over the universal acclaim that a “crime against humanity” has in fact been committed, not the allegations made in a legal case that would lay out the supporting facts to prove the grounds

for such outrage. The goal seems to be to continue buttressing what Israel's many haters see as "growing international recognition of Israel's crime of apartheid against the Palestinian people."⁶⁷ But this ultimately becomes an echo chamber that exists in the absence of either impartial trials or clear judicial outcomes. As such, the consensus views of self-proclaimed experts that "Israel is an APARTHEID STATE"⁶⁸ must be understood as bearing the imprint of those who have long held intractably antagonistic views toward Israel. In the words of an Egyptian institute dedicated to the study of human rights, its purpose may be directed primarily toward reinforcing societal assent to the hostile talking points of its Arab state sponsor.⁶⁹

This growing international and UN recognition would not have been possible without the pressure and advocacy campaigns of Palestinian, regional, and international civil society groups and human rights organizations. These campaigns have brought global awareness to how Israel imposes an apartheid regime on the Palestinian people through an arsenal of repressive and racist laws, policies, practices, including violence and intimidation.

In the realm of legal adjudications by the court of last resort within a sovereign nation, it may be that determining something to be true effectively makes it so, at least in the sense that the determination has the effect of becoming part of the binding law within that nation. But in the case of international law, which exists within spaces created between nations through bodies considered authoritative in their shared framework of international relations, ICJ advisory opinions are not the same as rulings based on findings of proven facts. Thus, such opinions are just that — not legally enforceable — and as pronouncements of "global awareness" of the validity of the opinions, they are not always accurately depicted when described as "global" or "awareness."

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Regardless, as there clearly is widespread support for the view that Palestinians must be seen as enduring steadfastly against the racist oppressions of Israelis, the antecedents of this embedded frame of mind deserves deeper scrutiny, which are now taken up in the following section.

Notes to Chapter 3

¹ Report of the World Conference against Racism, Racial Discrimination, Xenophobia and Related Intolerance Durban, 31 August – 8 September 2001, A/CONF.189/12 (Part III) [https://digitallibrary.un.org/record/451954/files/A_CONF.189_12%28Part III%29-EN.pdf](https://digitallibrary.un.org/record/451954/files/A_CONF.189_12%28Part%20III%29-EN.pdf).

² Yusuf Bangura and Rodolpho Stevenhagen (eds.), *Racism and Public Policy* (2005) Palgrave Macmillan, p. ix.

³ E.g., Walid Khalidi, "The Palestine Problem: An Overview," Autumn 1991, *Journal of Palestine Studies*, 21(1), 5–16. <https://doi.org/10.2307/2537362>.

⁴ Durban I took place between the time that Rome Statute had been ratified in 1998 and was "entered into force" in 2002. Rome Statute - Core Legal Text. International Criminal Court. <https://www.icc-cpi.int/publications/core-legal-texts/rome-statute-international-criminal-court>.

⁵ McDougall 2002.

⁶ WCAR NGO FORUM DECLARATION, 03 September 2001. <https://www.adalah.org/uploads/oldfiles/eng/intladvocacy/ngoforumdecl.htm>. There does not appear to be an authoritative version of this declaration, but the version cited here — from the website of Adalah, the Legal Center for Arab Minority Rights — is identical to the only other version found online, published by the Asia-Pacific NGO Movement for WCAR. <https://www.hurights.or.jp/wcar/E/ngofinaldc.htm>.

⁷ Hassan Jabareen, "On the Problems of Arab Identity: The example of Durban," October 4, 2001. *Al-Hayat Newspaper* (London). <https://www.adalah.org/uploads/oldfiles/>

upfiles/2011/Hassan%27s%20A1%20Hayat%20Article%20about%20Durban%20October%202001%20English.pdf.

⁸ Schoenberg H. O. (2002). Demonization in Durban: The World Conference Against Racism *American Jewish Yearbook 2002*, p. 85. <https://www.staff.city.ac.uk/p.wille/tts/NGOS/WCAR/SCHOENBG.PDF>.

⁹ McDougall 2002, pp. 145-146

¹⁰ European Roma Rights Centre, "ERRC Dissociates Itself from WCAR NGO Forum", September 5, 2001. <https://www.errc.org/press-releases/errc-dissociates-itself-from-wcar-ngo-forum>.

¹¹ E.g., Hanan Ashrawi To World Conference Against Racism (31 Aug. 2001). *Scoop World Independent News*. <https://www.scoop.co.nz/stories/WO0108/S00115/hanan-ashrawi-to-world-conference-against-racism.htm>. In Ms. Ashawi's words, "As the world watches, Israel has succeeded in evolving and imposing another grand deception in the form of an official spin that not only dehumanizes and demonizes the Palestinians, but also as an attempt at blaming the victim and resuscitating labels that represent us as subhuman species, and genetically violent terrorists, hence undeserving of any human treatment".

¹² Lahav Harkov, "20 years since Durban: Most sickening display of Jew-hate since Nazis," September 24, 2021, *The Jerusalem Post*. <https://www.jpost.com/diaspora/antisemitism/20-years-since-durban-most-sickening-display-of-jew-hate-since-nazis-680016>.

¹³ Durban 2001 - United Against Racism. Newsletter of the World Conference against Racism Secretariat. Issue 6, October 2021. *United Nations Office of the High Commissioner for Human Rights*. https://www.hurights.or.jp/wcar/E/doc/wcrnewsletter6_en.pdf.

¹⁴ Steinberg, G.M. (2006). Soft Powers Play Hardball: NGOs Wage War against Israel. *Israel Affairs*, Vol. 12:4, pp. 748-768, p. 756.

¹⁵ Report of the Asian Preparatory Meeting (Tehran, 19-21 February 2001), (A/CONF.189/PC.2/9), para. 21. <https://docs.un.org/en/A/CONF.189/PC.2/9>.

¹⁶ Gerald M. Steinberg, "Soft Powers Play Hardball: NGOs Wage War Against Israel," *Israel Affairs* 12(4), October 2006, 753.

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- ¹⁷ Statement: Marking 20 Years of the NGO “Durban Strategy” (09 Sept. 2021). NGO Monitor. <https://ngo-monitor.org/press-releases/marking-20-years-of-the-ngo-durban-strategy/>.
- ¹⁸ NGO Monitor Event: 20 Years of Hijacking Human Rights - The Lasting Impact of Durban (n.d.). NGO Monitor. <https://ngo-monitor.org/live/>.
- ¹⁹ Bill Gertz, “Iran’s Regional Powehouse,” Air Force Magazine, June 1996. <https://www.airandspaceforces.com/PDF/MagazineArchive/Documents/1996/June%201996/0696iran.pdf>.
- ²⁰ Karmon, E. (8 September 1998). Iran’s Policy on Terrorism in the 1990s. Internatoinal Institute for Counter-Terrorism. <https://ict.org.il/irans-policy-on-terrorism-in-the-1990s/>. (“Iran immediately perceived the threat to its ideological and strategic interests: the recognition of Israel’s legitimacy as a state in the Middle East and the consequent strategic, political and economic advantages to the Jewish state; the consolidation of the moderate Arab regimes and at the same time the threat to the radical Islamic movements, such as the Hizballah, if Syria joined the process in earnest; the isolation of Iran on the regional level and its defeat on the ideological ground.”)
- ²¹ Welcome to the Human Rights Council, n.d., <https://www.ohchr.org/en/hr-bodies/hrc/about-council>.
- ²² Andy Levy-Ajzenkopf, “Canada Says No to Durban II,” January 31, 2008. The Canadian Jewish News. <https://thecjn.ca/news/canada-says-no-durban-ii/>.
- ²³ AFP Newswire, “Western leaders recoil in horror at Ahmadinejad’s ‘racist’ speech,” April 20, 2009 <https://timesofmalta.com/article/western-leaders-recoil-in-horror-at-ahmadinejads-racist-speech.253725>.
- ²⁴ Daniel Jeffrey, “Iran & America: The Clenched Fist Grasping an Olive Branch,” May 13, 2009. *Royal United Services Institute*. <https://www.rusi.org/explore-our-research/publications/commentary/iran-america-clenched-fist-grasping-olive-branch>.
- ²⁵ Navi Pillay, “Durban Anti-racism Conference Outcome,” April 22, 2009), Office of the High Commissioner for Human Rights. <https://www.ohchr.org/en/opinion-editorial/2009/10/opinion-piece-durban-anti-racism-conference-outcome-navi-pillay-united>.

- ²⁶ Ahmadinejad speech: full text (21 Apr. 2009) *BBC News*. http://news.bbc.co.uk/2/hi/middle_east/8010747.stm.
- ²⁷ HR/4554, In Statement To Preparatory Committee Of Racism Conference, Human Rights Commissioner Mary Robinson Reviews Progress, UN Press Release for information media, August 9, 2001. <https://press.un.org/en/2001/hr4554.doc.htm>.
- ²⁸ UNGA Res. 46/86 - English (1991). The Israeli-Palestinian Conflict: An Interactive Database. https://ecf.org.il/media_items/1518.
- ²⁹ G.A. Res. 46/86, U.N. Doc. A/RES/46/86 (Dec. 16, 1991). <https://docs.un.org/en/a/res/46/86>.
- ³⁰ Louis Allday (@Louis_Allday) (October 10, 2023).[Post] X. https://x.com/Louis_Allday/status/1711789614925496672?s=20: "In the entire history of the United Nations, only one successfully ratified General Assembly Resolution has ever been repealed: UNGA 3379 in 1991 after intense US/Israeli pressure and blackmail." Interestingly, Mr. Allday, whose articles are often published online in sources such as *Mondoweiss* and *Electronic Intifada*, made this point only three days after October 7, 2023.
- ³¹ The 1991 resolution satisfied Israel's insistence that its participation in the Madrid peace conference planned for the end of that year depended on it, as a quid pro quo to the PLO having observer status, given that Israel had not accepted its purported status at that time as the "sole legitimate representative" of the Palestinian people. See, UNGA Resolution 46/86 (1991). Economic Cooperation Foundation. <https://ecf.org.il/issue/s/issue/1321>.
- ³² Edward Said, "How Do You Spell Apartheid? O-s-l-o," October 11, 1998. *Ha'aretz*. <https://www.edwardsaid.org/articles/how-do-you-spell-apartheid-o-s-l-o/>.
- ³³ Boyle, F.A. (Jan 2002) Law and Disorder in the Middle East. *The Link*, 35, 1. *Americans for Middle East Understanding*, <https://www.derechos.org/human-rights/mena/doc/boyle1.html>. (After reviewing the original Oslo agreement, Professor Boyle recalled telling his clients, many years after the fact: "A bantustan. They are offering you a bantustan. As you know, the Israelis have very close relations with the Afrikaner Apartheid regime in South Africa. It appears that they have studied the bantustan system quite closely. So it is a bantustan that they are offering you.")
- ³⁴ Stern-Weiner, J. (March 17, 2014). The end of Palestine? *Peace News*. <https://peacenews.info/node/7563/end-palestine>.

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- ³⁵ Finkelstein, N. (Nov. 1998). Securing Occupation: The Real Meaning of the Wye River Memorandum. *New Left Review*. Issue 232. <https://newleftreview.org/issues/i232/articles/1977>. Finkelstein's glib mention of South African Bantustans being "eventually granted statehood" is bizarre, as none of them ever were, except in the most useless, self-serving sense by the political entity that created them in such a way that suggested they should be considered representatively governed "states."
- ³⁶ Erekat, N., & Reynolds, J. (2021, April 20). We Charge Apartheid? Palestine and the International Criminal Court. *TWAILR: Third World Approaches to International Law Review*. <https://twailr.com/we-charge-apartheid-palestine-and-the-international-criminal-court/>.
- ³⁷ This pamphlet is referenced in footnote 57 of Keren Greenblatt, "'Gate of the Sun': Applying Human Rights Law in the Occupied Palestinian Territories in Light of Non-Violent Resistance and Normalization," 12 *Nw. Journal of Int'l Human Rights*, 152 (2014). <https://scholarlycommons.law.northwestern.edu/cgi/viewcontent.cgi?article=1171&context=njihr>. The pamphlet's publisher presumably remains active, as shown by its still active website at <https://stopthewall.org/>, but the pamphlet itself no longer appears to be available online.
- ³⁸ Palestinian Civil Society, "Call for BDS", August 7, 2005. Palestinian BDS National Committee. <https://bdsmovement.net/call>.
- ³⁹ Zohar Palti, The Implications of the Second Intifada on Israeli Views of Oslo, September 8, 2023. The Washington Institute. <https://www.washingtoninstitute.org/policy-analysis/implications-second-intifada-israeli-views-oslo>.
- ⁴⁰ McCarthy, R. (2007, Nov. 30). Israel risks apartheid-like struggle if two-state solution fails, says Olmert. *The Guardian*. <https://www.theguardian.com/world/2007/nov/30/israel>. The same report noted that "the Israeli government is usually bitterly resentful of any comparison to the apartheid regime, but Olmert's remarks looked like an effort to galvanise support from a skeptical Israeli public for a return to peace negotiations with the Palestinians in the days after the Annapolis conference."
- ⁴¹ The Beinart Notebook, accessed April 11, 2026. <https://peterbeinart.substack.com/>.
- ⁴² Peter Beinart, *The Crisis of Zionism*, Times Books, 2012, 127. It is worth noting that Mr. Beinart's father was deeply engaged in the anti-apartheid movement in South Africa before the family emigrated to the United States. Peter Beinart, "The Day My Father Lost His Country," *The Atlantic*, December 16, 2016. <https://www.theatlantic.com/international/archive/2016/12/the-day-my-father-lost-his-country/510893/>.

- ⁴³ Chomsky, N (2002). The Fate of an Honest Intellectual. <https://chomsky.info/power01/>.
- ⁴⁴ Gaza's Gravediggers - Reviews (Release date: Mar. 31, 2026). https://moonpalacebooks.com/item/c_XdcfkymNdYa9DHeG9ng. ("Probably the most serious scholar on the conflict in the Middle East")
- ⁴⁵ Dr John Reynolds Joins the Department of Law. (30 Jan. 2014). Maynooth University. <https://www.maynoothuniversity.ie/news-events/dr-john-reynolds-joins-department-law>.
- ⁴⁶ Rome Statute, Article 7(2)(h).
- ⁴⁷ Blanca Gonzalez-Sobrinho & Devon R. Goss, "Exploring the mechanisms of racialization beyond the black-white binary," 2019, *Ethnic and Racial Studies*, 42.4, 505–510. doi: 10.1080/01419870.2018.1444781. <https://doi.org/10.1080/01419870.2018.1444781>.
- ⁴⁸ The Law of Belligerent Occupation, 1907 Hague Convention IV, Articles 42–56. <https://ihl-databases.icrc.org/ihl/INTRO/195>.
- ⁴⁹ Giovanna Dell'Orto, "The West Bank's dwindling Palestinian Christian communities continue to struggle amid violence," AP New, October 9, 2025 <https://apnews.com/article/west-bank-christians-israel-palestinians-mideast-war-912c4f0ea073d8f091e762f1466a7423>.
- ⁵⁰ E.g., Uzey Bulut, "From Christian to Majority-Muslim: Lebanon's Cautionary Tale for Europe" (December 25, 2025). *The European Conservative*. <https://www.aljazeera.com/news/2023/4/20/lebanon-clashes-between-christians-and-muslims-in-south>. ("According to Open Doors, churches in Muslim areas often choose not to display religious symbols and iconography to avoid provoking hostility from the Muslim communities in which they are located. In 2021, clashes between Shia and Christian villages in southern Lebanon's Hezbollah-controlled territory left six people injured. Christian religious symbols were attacked by Shia armed elements during the clashes.")
- ⁵¹ Scott A. Bollens, "Urban Policy in Ethnically Polarized Societies," 1998, *International Political Science Review* 19,2, 187–215. <https://www.jstor.org/stable/1601323>. While this author is highly critical of Israeli policies in the urban segmentation of Jerusalem, and recognizes that Jewish political dominance disadvantages Arab non-citizen residents there, the issue identified is how best to apply "practical principles which foster the coexistent viability of antagonistic sides" (209) in a shared setting, not to assume that distinct

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populations — especially those with a long and largely unresolved history of hostility toward each other — will eventually prefer to live in integrated environments.

⁵² “Self-determination” (variously referred to as a “right” or a “principle”) is explicitly mentioned in two articles of the United Nations Charter. Its contemporary scope and meaning is generally considered largely derived from Woodrow Wilson’s “Fourteen Points” speech delivered to Congress in January 1918, which did not use the term but included multiple references to the “political independence and territorial integrity to great and small states alike.” As noted in a 1965 law article, The “essence” of Wilson’s approach was to apply the notion to the “self-government of peoples.” M.K. Nawaz, *The Meaning and Range of the Principle of Self-Determination*, *Duke Law Journal*, Vol. 1965, No. 1, pp. 82–101. <https://scholarship.law.duke.edu/cgi/viewcontent.cgi?article=1918&context=dlj>. However, the interest of the UNGA to advance such “peoples” related to its collective desire to bring about “a speedy and unconditional end [to] colonialism in all its forms and manifestations.” UNGA Resolution 1514 (XV) (December 14, 1960), <https://www.ohchr.org/en/instruments-mechanisms/instruments/declaration-granting-independence-colonial-countries-and-peoples>. Clearly, the South African bantustan system was the antithesis of this desire, as it represented fragmenting peoples into artificially localized areas of supposed self-control that had no connection to meaningful sovereignty. This is clear from an interview that Prime Minister P.W. Botha gave to *Time Magazine*’s local bureau chief in 1979. “Putting a Pretty Face on Apartheid,” *Time Magazine*, December 3, 1979, 59–60. Referring to the country’s “native” population, he noted that “we have made available ...certain facilities in housing, which is welcomed by most of them”; and “we will grant them local government so they will be able to control many aspects of their lives.” The opportunity for eventual self-determination and political independence was never anticipated, much unlike the intention reflected by the “interim self-government” wording used in the 1993 Oslo accords.

⁵³ As noted by Samuels, “[t]he amounts of money stolen ...through the corrupt practices of Arafat’s inner circle are so staggeringly large that they may exceed one half of the total of \$7 billion in foreign aid contributed to the Palestinian Authority. ...The International Monetary Fund has conservatively estimated that from 1995 to 2000 Arafat diverted \$900 million from Palestinian Authority coffers, an amount that did not include the money that he and his family siphoned off through such secondary means as no-bid contracts, kickbacks, and rake-offs. A secret report prepared by an official Palestinian Authority committee headed by Arafat’s cousin concluded that in 1996 alone, \$326 million, or 43 percent of the state budget, had been embezzled, and that another \$94 million, or 12.5 percent ...went to the president’s office, where it was spent at Arafat’s personal discretion. An additional 35 percent of the budget went to pay for the security services, leaving a total of \$73 million, or 9.5 percent of the budget, to be spent on the needs of the population of the West Bank and Gaza.”

⁵⁴ Add a footnote here.

⁵⁵ Qatar v. United Arab Emirates, Judgment of February 4, 2021, ICJ Reports 2021, <https://www.icj-cij.org/public/files/case-related/172/172-20210204-JUD-01-00-EN.pdf>. The ICJ ruling clarified that the ICERD's inclusion of the term "national origin" as a basis for racial discrimination claims related to the protection of "persons of foreign origin who are subject to racial discrimination in their country of residence on the grounds of that origin" (98, ¶151.)

⁵⁶ International Court of Justice (February 26, 2007). Case Concerning Application of the Convention on the Prevention and Punishment Of The Crime Of Genocide — Bosnia and Herzegovina v. Serbia and Montenegro, 124. <https://www.icj-cij.org/sites/default/files/case-related/91/091-20070226-JUD-01-00-EN.pdf>. ("The intent must also relate to the group 'as such'. That means that the crime requires an intent to destroy a collection of people who have a particular group identity.")

⁵⁷ Declaration of President Salam (July 19, 2023), Document Number 186-20240719-ADV-01-01-EN in Case 186 (Legal Consequences arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, including East Jerusalem), 5–6 (paras 21–22). <https://www.icj-cij.org/index.php/node/204161> Para. 21 ("Article 1 of [ICERD] clearly indicates that 'race' is not the only criterion of racial discrimination. ...Palestinians and Israeli Jews identify themselves as two distinct groups based on 'subjective' elements relating to 'descent, or national or ethnic origin', including those relating to religion and culture, and should therefore be considered as two 'racial groups' within the meaning of the first constitutive element of apartheid.")

⁵⁸ Glenn-2015.

⁵⁹ International Criminal Court — About the Court (n.d.) <https://www.icc-cpi.int/about/the-court>. ("The International Criminal Court (ICC) investigates and, where warranted, tries individuals charged with the gravest crimes of concern to the international community: genocide, war crimes, crimes against humanity and the crime of aggression.")

⁶⁰ Ghada Karmi, "The One-State Solution: an Alternative Vision for Israeli-Palestinian Peace." *Journal of Palestine Studies*, Vol. XL, 2 (Winter 2011), 62–76, 72. https://www.palestine-studies.org/sites/default/files/attachments/jps-articles/jps_2011_xl_2_62.pdf. ("The reality is that opponents of the one-state solution far outnumber supporters. Much of the resistance — from both Palestinians and Israelis — relates to the formidable obstacles to the idea's implementation, starting with the lack of constituency on either side. Indeed, a 2009 Jerusalem Media and Communication Centre

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opinion poll found that only 20 percent of West Bank and Gaza Palestinians, and just 9 percent of Jewish Israelis favored a binational solution.”)

⁶¹ Mark Goldfeder (@MarkGoldfeder) (July 19, 2024).[Post] X. https://x.com/Louis_Allday/status/1711789614925496672?s=20: “Remember that the President of the Court, Judge Nawaf Salam, previously served as Lebanon’s ambassador to the United Nations. During his tenure as ambassador Salam routinely accused Israel of apartheid, war crimes, and terror, and sided with Iran. Why is this important? Because under the ICJ’s charter (Article 17, Section 2) ‘No member may participate in the decision of any case in which he has previously taken part as ...advocate for one of the parties ...or in any other capacity.”

⁶² Declaration and Programme of Action (2002). World Conference Against Racism, Racial Discrimination, Xenophobia and Related Intolerance. UN Department of Information, New York. https://www.ohchr.org/sites/default/files/Documents/Publications/Durban_text_en.pdf.

⁶³ International Court of Justice (19 Jul. 2024). Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem. <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-00-en.pdf>. p. 7.

⁶⁴ Victor Kattan, “Apartheid or Systemic Discrimination? A Connotative Reading of the ICJ’s Advisory Opinion,” Oct. 17, 2024, *Verfassungsblog*, <https://verfassungsblog.de/apartheid-or-systemic-discrimination/>.

⁶⁵ Id.

⁶⁶ This point is noted in the separate opinion of Judge Nolte published alongside the court’s final opinion. Separate Opinion of Judge Nolte, <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-08-en.pdf>. *Dolus specialis* — that is, a “specific intent to cause a specific kind of harm” — is required whenever a crime is deemed heinous, based on the widely accepted legal principle that “specific intention, required as a constitutive element of the crime” depends on showing that “the perpetrator clearly [sought] to produce the act charged.” Guide to Latin in International Law, 2d ed., 83.

⁶⁷ Cairo Institute for Human Rights Studies (16 Mar. 2022) Coinciding with the 49th UN Human Rights Council: 16-day awareness raising campaign on Israel’s crime of apartheid against the Palestinian people. <https://cihrs.org/coinciding-with-the-49th-un-h>

uman-rights-council-16-day-awareness-raising-campaign-on-israels-crime-of-apartheid-against-the-palestinian-people/?lang=en.

⁶⁸ "Israel is an APARTHEID STATE — The B'Tselem Analysis," A briefing paper by the Ireland-Palestine Solidarity Campaign - March 2021. <https://www.ipsc.ie/wp-content/uploads/2021/07/Apartheid-The-BTselem-Analysis-IPSC-Briefing-March-2021.pdf>.

⁶⁹ *Id.*

4. Dehumanized

Since the “Al-Aqsa Flood” operation started on October 7, 2023, an informed consensus has emerged that apart from whatever “paradigm shift in the philosophy of the resistance” may have been envisioned,¹ its most consequential outcome over the long term has been increased outrage in Western societies toward Israel and sympathy — or even outright support — for its regional adversaries.² This ostensibly counter-intuitive result has been attributed to multiple factors, such as the view that the operation was either facilitated by Israeli authorities or the result of their own actions;³ or that it is unsurprising given decades of Israeli oppression;⁴ or that Israel’s targeting afterward of vulnerable civilians and its vast destruction of Gaza’s infrastructure cannot be overlooked, as it explains why Hamas took such extreme measures in the first place.⁵ This shift could also reflect longer-term antecedents, such as the effects of algorithmic-driven social media on young people’s attitudes⁶ and their increasing receptivity to any social justice ideological framework that one apologist for the operation described as “de-exceptionaliz[ing] Palestine by harnessing the Palestinian cause’s universalist appeal.”⁷

Regardless, this outcome has presented jihadist MENA state and non-state actors with an opportunity to expand their doctrine of “perpetual resistance” into the social activism throughout Western Europe and North America.⁸ They were never shy before about heaping Israel with scorn and shame in the MENA region but now, neither were those supporting them in those wider geographies. A sophisticated follow-up campaign to discredit Israel’s international standing quickly engulfed Western milieus.⁹ Its much higher tempo after October 7, particularly on college campuses and in youth-oriented media, nat-

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urally generated considerable alarm.¹⁰ While silent about the recent atrocities committed by Israel's enemies, the incessant fomenting of outrage toward Israelis and anyone who supported them — derisively labeled as “Zionists” — gave strong indications of being part of a cohesive, overall strategy. Claims of an “impending genocide”¹¹ filled the Infosphere as “within minutes, graphic imagery and bombastic propaganda began to flood social media platforms,”¹² well before any response from Israel actually took place. Claims of ever more disproportionate brutality and oppression on Israel's part was a recurring feature of the messaging¹³ as NGOs and activist groups avidly predicted Israeli war crimes.¹⁴ Then, once Israel began responding, unconditional uniformly pleading, to use the phrasing of one such activist group, that the World “take moral action and implement an immediate ceasefire now.”¹⁵

The purpose of this vast onslaught of the anti-Israel pen in addition to the sword was never obscure. But, while many in Western societies could see that Israelis suffered immensely on October 7, with even greater physical and psychic trauma than what Americans experienced on September 11, 2001 and Europeans on November 13, 2015, they may not have realized they were now targets in a war of their own. Its was choreographed by either careless or deliberately misleading news reporting, along with strident “commentary” about what was actually going on in Gaza and the north of Israel, where Hezbollah “launched guided rockets and artillery onto three posts in the Shebaa Farms ‘in solidarity’ with the Palestinian people.”¹⁶ Eventually, and perhaps inevitably, the ability of major news outlets to stop mass incitement diminished, replaced by such things as covering with comment things such as a musical chant at a massive UK concert of “Death, death, death to the IDF.”¹⁷ Provocations exploded across scheduled public events, campus encampments and supposedly spontaneous activist demonstrations and “actions,” often crossing over (or at least bordering) what might be legally constrained in the interest of public safety and civil order. All such tactics were intended to arouse the interest of people who might otherwise prefer to remain largely oblivious to the overall situation, moving them away from vague feelings of

sympathy for those killed or taken hostage and toward hardened attitudes that compelled them to join in what was constantly depicted as the World's most important, righteous and still unresolved humanitarian cause: Palestine.¹⁸

Unsurprisingly, the coordinated histrionics of this overall turn of events have had a profound impact on popular sentiment. Emblematic of its changed shape might be the social media views by two otherwise random mid-career professionals. A non-profit communications manager declared in early 2024 that after "11 years of demanding a Free Palestine ...[a]partheid has led to genocide, and as Americans, we are complicit."¹⁹ A philosophy professor focused on the "nature of empathy"²⁰ shared in 2026 that while she cared "deeply" about "the people of Israel" and loathed Hamas, "the actions of a genocidal Israeli administration" were "unconscionable."²¹ Across their generation, a view has gradually taken hold that Israel thrives at the expense of Palestinian suffering because its "far-right" leaders (if not its ordinary citizens) can't resist doing genocidal things. This takes precedence no matter how impressive the nation's advances in the fields of science, technology or business may be, or how important it may be to Jewish communities worldwide. Thus, a certain habit of mind can now be seen as having taken root in the contemporary Western imaginary, inculcated by the litany of attacks on Israel, so that is now seen as a one-dimensional comic book villain, imposing its evil over the erased, "indigenous" topography of Palestine.

This perceptual reality encapsulates how accusations of Israeli apartheid have served as a predicate for further claims of Israeli genocide.²² The two charges are worthy of further scrutiny together because essentially, they amount to a concatenated pair. Feeding off each other in their irrebuttable depiction of horrific intent, they are now the dual touchstones in attempts to dehumanize Israel as the perpetrator of crimes against humanity, leaving only misery in her wake. Thus, apart from labeling people (mainly Jews) as "apartheid loving Zionists"²³ and governments and organizational entities that do not oppose Israel's ongoing existence (mainly in Western societies) as "accomplices of genocide," the hundreds of thousands of academics, me-

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dia influencers, public figures and “just plain folks” who have chosen to utter these pronouncements enable the success of what amounts to the “master narrative” of Palestine. In its overarching essence, the collective force of such messaging is nothing more nor less than the “grand, deeply culturally embedded, views of history” that form the “trans-historical narrative that is deeply embedded in a particular culture.”²⁴ Moreover, to borrow the words of a prestigious Israel hater who also happened to have been born an Israeli, it is the “navigation” of such values, and the “commitment to liberation,” and the “particular mode of expression” used in articulating such things that lies “at the heart of the ‘Theory of Palestine.’”²⁵

Almost invariably emphasizing that Palestine’s victims are women, children, journalists, doctors or those living otherwise innocent or worthy lives, and making no mention of the deep penetration of Hamas into civil society, civilian infrastructure and below-ground tunnels for combat operational purposes, this epic story of plight is packaged as the “comprehensive annihilation of a people’s social, cultural, intellectual and biological continuity.”²⁶ In its totality, as well as in its essence, it constitutes a mode of communication that bundles various manipulative techniques, all designed to invoke feelings of group-specific guilt and having the effect of dehumanizing the group and its allies, which must all be held collectively responsible. Thus, Israel, the United States and “The West” all stand accused. But while such frenzied narratives may have been for the most part dismissed throughout the second half of the prior century by Western audiences, as contrary to both fundamental honesty and common sense, their deeply troubling ascendancy in the current era lies at the heart of this paper’s overall thesis. The key point here, perhaps most tellingly, is that this phenomenon is not only the result of the long chain of events and trends described in preceding sections, with the UN at the center of gravity of its continual uplift; rather, it also represents the start of a new era of calumny aimed primarily at Jewish people, and all other groups that stand in the way of what author Bruce Bawer detected years ago and named *The Victims’ Revolution*. As a reviewer of Bawer’s book noted, it “confirms what many have long known or suspected: most of what happens in

'identity studies' is pseudo-intellectual because its goals are nonintellectual."²⁷

This section thus turns to how the grotesque imagery and rhetoric now routinely used to define Israel have become the vortex of the victims' revolution. Befitting Israel's purported status alongside the worst regimes of the last century (South Africa's apartheid regime and Germany's Nazi regime), Israel hatred has emerged into a sort of bewildering heyday. It has now become so wildly popular as the sum and substance of the victims revolutionary portfolio that is applied mechanistically, with no real thematic variation, so that the immediately prior century's worst nightmares must be seen as irrevocably attached to a geographically miniscule nation that possesses both a thriving, diverse culture and increasingly prosperous economy. Not only has this master narrative turned the Jews (now updated to the "Zionists") from the archetypal victims of the last century into the quintessential villains of the present one, it has embodied an outlook in the present era that reflects a monumental breakdown in reasoning which threatens to engulf the views of vast numbers of well-intentioned and often well-educated people in Western society, such as college professors, non-profit managers and countless others. But for their desire for minor, personalized celebrity in their preferred channels of social media to proclaim that they are on the side of Good, they might have remained anonymous. Yet they are now highly visible, railing on against what they perceive as the Evil.

In this resulting worldview of a harmonious and peaceful world despoiled only by Israel, a seemingly eternal (if occasionally dormant) hostility has thus been resurrected toward Jewish identity, transformed from the prior century in the form of Jews as purveyors of a perverse religiosity²⁸ into their contemporary characterization as purveyors of a perverse "ethno-supremacist national ideology."²⁹ Such a characterization destroys any sympathy, legitimacy or goodwill that may otherwise be felt toward Israel and its supporters. Thus, Israel's national future is to be sacrificed to save its Palestinian victims from their otherwise endless "Zionist problem."³⁰ The growing intensity of this desire for a "shaking off" of Israel, its Jewish national identity and

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its supporters — which reflects the actual meaning of the Arabic word *intifada*³¹ — overpowers all countervailing logic, in the name of reversing what is now universally acclaimed to be the paragon example of societal and racial injustice. With the mantras of “anti-Zionism” (but not antisemitism) having thus taken center stage among the world’s multitude of “anti-racist” causes, the question becomes how this absolutist worldview came to capture so much prominence on the dashboard of Western priorities, so that they now resonate as deeply as appeals against South African brutalities or Nazi atrocities only a did several decades ago.³²

The answer may be akin to a phrase in the Ernest Hemingway novel *The Sun Also Rises*. When asked how he went bankrupt, a character replies: “Two ways. Gradually, then suddenly.”³³ As noted in the preceding section, after the Oslo peace process stalled in the late 1990s, efforts aimed at Israel’s delegitimization were gradually amplified by civil society actors, together with states that continued to harbor hostility toward Israel, thus resuming the Resolution 3379 era of accusations of racism that were ostensibly put to rest in 1991 with UNGA resolution 46/86.³⁴ The process began in earnest at the World Conference Against Racism in 2001 (Durban I), continued through the BDS campaign’s launch in 2005 by NGOs complicit in the resistance movement,³⁵ and received a bold endorsement in the opening speech of Iran’s Mahmoud Ahmadinejad at the Durban II conference in Geneva, in 2009.³⁶ The efforts continued into the mid- to late-2010s, with a formal call to “globalize the Intifada” in 2014,³⁷ the so-called “Third Intifada” of 2015–16,³⁸ Hamas’ “Great March of Return” in 2018–19,³⁹ and the May 2021 conflict in Gaza.⁴⁰

Considering the line in Hemingway’s novel, the years between September 2001 and October 2023 may thus be considered the “gradually” phase; the era since then is the “suddenly” one. But by parsing the chronology of the resurgence of Israel hatred in this fashion, a deeper issue arises: what laid the foundation for it in the first place? That is, how was it that long after 1991, when the “Zionism is racism” formula lost its formal backing in the UNGA, the seeds for its return were hardy enough to take root again and return in a new era of what

one sympathetic commentator has described as “revolutionary mobilization”?⁴¹ By way of comparison, during the era leading up to and including the Oslo process, there were only faint rumblings that Israel should be denounced as an apartheid state. One example is found in a 1983 pamphlet in which Israel’s reliance on captive Palestinian labor was noted as a fundamental characteristic of what can be considered (as noted in section II) an intrinsic element of apartheid as an archetypal system.⁴² Published by EAFORD, an NGO deeply engaged in anti-Israel advocacy at the UN which had ties to Moammar Kaddafi’s regime in Libya,⁴³ its author had earlier taken part in France’s anti-apartheid movement after the Algerian war of independence.⁴⁴ But by the early 2010s, at a time when Israel and Palestine had long been considered on separate national trajectories as a result of the Oslo process (unlike the situation in South Africa, where Bantustan political independence was never seriously contemplated), Israel’s oppression was alleged by John Dugard — a South African academic who was directly involved in UNGA committee work relating to the conflict — as “even worse” than South Africa’s because Israel did less for Palestinians than South Africa did for those it consigned to Bantustans.⁴⁵ To understand how an Israel-South Africa equivalency had thus moved from a sideshow in the polemics of an NGO on the UN’s fringes (that is, EAFORD) to become part a primary focus of the UNGA, warranting its passage of the “Zionism is racism” resolution, two aspects of the transition require further examination. The first is the final years of the career of Dr. Fayeze Sayegh (1922-80), a pan-Arab diplomat and author whose hatred toward what he once described as “the Zionist program of incursion into the Arab World”⁴⁶ provided the impetus for his claims of racism toward Palestinians.⁴⁷

As noted in section I, Dr. Sayegh’s 1965 monograph, *Zionist Colonialism in Palestine*, is the foundational document of the “Zionism is racism” equation, and it has organized political support even today, notwithstanding the withdrawal of Resolution 3379 nearly 35 years ago.⁴⁸ The monograph was published shortly after the PLO launched the “Palestine Research Center,” which it placed under Sayegh’s direct editorial oversight, even though he apparently remained employed

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in a diplomatic capacity for Arab states at the UN. In it, Sayegh depicted Israel as not only an unwelcome interloper, but also an inherently racist one. Why did he shift his critique of Israel to center on racism after having written extensively about it in prior articles without giving any attention to this particular societal condition? It may have been that, like other Arab intellectuals living abroad during this era, he saw himself as holding “an interstitial position between two worlds,” giving him an opportunity to be among those who were “catalysts for change.”⁴⁹ He may have been influenced by Black-Algerian Marxist theorist Frantz Fanon, whose highly influential 1963 book, *The Wretched of the Earth*, generated Arab interest in the early 1960s, soon after publication.⁵⁰ Had he investigated further, he would have easily found “Racism and Culture,” a speech Fanon gave at the first Congress of Negro Writers and Artists in Paris in 1956.⁵¹ In it, Fanon established the equation: “In reality, a colonial country is a racist country.”⁵² He might also have pondered Fanon’s point that “At the United Nations there is a commission to fight race prejudice.”⁵³ Or, he may have recalled how the Soviet delegation challenged a proposed American insertion into the draft ICERD with countervailing language that “policy and ideology of colonialism, national and race hatred and exclusiveness,” as discussed in section II.

In any case, as his career progressed, and he became a fixture in the Arab delegation offices at the UN, Sayegh continually refined his monograph’s claim that racism was at the heart of what it described as “the Zionist settler state.” His emphasis on Israel’s original sins of colonialism and racism was also repeated almost word-for-word in a statement echoing a Fanonian universal argument that was “presented by the General Union of Palestine Students.” Entitled “The Palestine Problem.”⁵⁴ Issued not long after his 1965 monograph was published, it appears likely to have been the product of his ghostwriting pen:

[A]s a racist system animated by doctrines of racial self-segregation, racial exclusiveness and racial supremacy, and methodically translating these doctrines into ruthless practices of racial discrimination and oppression — the political systems erected by Zionist colonists in Palestine cannot fail

to be recognized as a menace by all civilized men dedicated to the safeguarding and enhancement of the dignity of man. **For whenever and wherever the dignity of but one single human being is violated, in pursuance of the creed of racism, a heinous sin is committed against the dignity of all men everywhere.** (Emphasis in original.)

By this time, Sayegh's focus had clearly shifted. No longer was he content, as he had been in the 1950s, to critique the left-leaning nature of Israeli society (Sayegh, 1958b) or glorify the unalterable nature of Arab unity in the Levantine world of Syria and Lebanon (which included Palestine as "southern Syria" due to "the occupation thereof by Muslim-Arabs from the Arabian Peninsula in the Seventh Century AD" (Sayegh, 1958a, 12). As Sayegh took his place as an eminent figure in the rarefied world of international diplomacy of all Arab states — a far cry from his early years as a political operator on the fringes of a chauvinistic Syrian movement that was ultimately suppressed by the Assad regime⁵⁵ — he was now directing all his energy toward championing the cause of Palestine on behalf of the Arab bloc of UNGA members states.

Over the final decade of Sayegh's life, while serving "in various capacities for a variety of Arab states at the UN, and ultimately as chief of the Arab States' delegation to the UN,"⁵⁶ his contribution to normalizing Israel's worldwide ostracism reached its climax. He used his deep experience in navigating the UN's many forums, systems and committees to justify the Arab states' outright refusal to engage directly with Israel, because it was entirely up to the UN to solve the "whole problem" it had created by recognizing Israel in the first place.⁵⁷ Meanwhile, to make the UN as hostile as possible to Israel, so that her ability to engage diplomatically in its forums was poisoned at the base, Sayegh became "the principal author" of Resolution 3379⁵⁸ while serving as "Senior Consultant to the Kuwait Ministry of Foreign Affairs and as a member of the Delegation of Kuwait to the United Nations."⁵⁹ Throughout this time, he also traveled frequently, giving numerous lectures and presentations to groups interested in learning about the Arab world's views on Israel and other topics. He also repre-

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sented Kuwait on the UNGA committee established under Article 8 of the ICERD (that is, the CERD) and appears to have served as its “rapporteur” from 1968 until his death in 1980.⁶⁰ The CERD was “the first body established by the United Nations to examine the application of a human rights treaty.”⁶¹ And, as is shown by the role of EAFORD, which “derive[d] both its name and its inspiration” from the ICERD, it was always the goal of Arab states to use the ICERD in a way that effectively weaponized its overall purpose against Israel.

The racism theme thus established by Sayegh’s work — both as a writer for the PLO and as the author of the UNGA’s Resolution 3379 — was also not confined to the official deliberations of general assembly or the various committees and task forces of the UN. It was also socialized within the UNGA by Arab states, as shown by a letter from Iraq’s UN ambassador which distributed the resolutions of a “Symposium on Racism” held the following year in Baghdad, as an annex to a UNGA agenda item.⁶² The symposium’s resolutions noted that since Israel’s creation in 1947 on the basis of a proposed partition of Palestine, “the resolution of November 1975 ... had been adopted when membership of the United Nations had become more genuinely representative of the opinion of the world as a whole”; that “Zionism as a colonial settler concept was an offshoot of 19th century imperialism”; and that “[n]othing is more dishonest than the slogan — unleashed by the United States and Israel as the principal weapon in their campaign against the decision of the United Nations — that anti-Zionism is anti-Semitism.” But perhaps the most incisive argument brought forward by Israel’s enemies to delegitimize Israel can be found in the declaration issued by the forum held in Tripoli, Libya in the spring of 1976, at which Sayegh spoke and probably helped edit, if not write:⁶³

The ruthless campaign of vilification to which the United Nations has been subjected, by Zionism and its racist and imperialist allies, in response to its principled and courageous adoption of the afore-mentioned resolution reveals the desperation and isolation of the forces of racism and Zionism in today’s world. Nothing is more dishonest than the slogan — unleashed by the United States and Israel as the principal weapon in their

campaign against the decision of the United Nations — that anti-Zionism is anti-Semitism.

The fact that the written conclusions of both the Tripoli and Baghdad conferences emphasized that “anti-Zionism” could not possibly be considered anti-Semitism is also notable here. It directly echoes the assertion made by the Soviet delegation in its proposed amendment to the wording of ICERD, reviewed in section 2, that sought to differentiate between anti-Semitism — which ended up *not* being specifically mentioned as a form of racism in the wording of the ICERD — and Zionism, which could be equated with “colonialism, Nazism and neo-Nazism.”⁶⁴ In effect, Resolution 3379, which operationalized Sayegh’s 1965 monograph, reverted to the Soviet interpretation of the ICERD as reflected by its proposed amendment to its wording, even though that amendment was not in its final language. Thus, by the mid-1970s, a premeditated attempt by Arab state delegations within the UN — Libya, Kuwait, Iraq, and others, in close coordination with the PLO and in conjunction with eastern bloc and African states — was in full swing. Its goal was to depict Israel and its western allies as flagrantly racist colonialists who exploited subjugated peoples.⁶⁵ In the long run, it is now clear that this strategy was meant to establish that just as the racist practices of South Africa were abhorrent to the world, so too should Israel’s be — and the West’s. After all, the special value of connecting Israel (always identified as “Zionism”) with “other racist regimes, as evidenced by its close relationships with Rhodesia and South Africa, [was in reinforcing it as] ...a natural outcome of its roots and development, for it has always drawn its support and sustenance from imperialism and settler-colonial regimes.”⁶⁶

But notwithstanding this manipulation of the purpose of a UNGA convention on racial discrimination to direct its most far-reaching inquiries and accusations against Israel, on a basis that eventually made it equivalent to apartheid-era South Africa, it is not altogether clear that the reality of settler-colonialist oppression was what truly what drove Sayegh and many others in the Arab world to denounce Israel so categorically. It may have been useful to frame for both Arab and non-Arab audiences the basis of reasoning that Westerners could rec-

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ognize was derived from their own disgraceful histories. But a more fundamental reason for Sayegh's enmity toward Israel seems to have centered on the resurgence of a Jewish national identity that it demonstrated, which stood apart from and beyond Jewish religiosity. In so doing, it could no longer be considered secondary to the supremacy of Islamic religiosity and national identity in the MENA region, reflected by its *dhimmi* traditions. This is evident from at least two of lines of argument used by Sayegh, EAFORD and others in the Arab world's anti-Israel camp. The first can be gleaned from Sayegh's early writing on Arab unity, as expressed in his 1958 book, *Arab Unity: Hope and Fulfillment*, in which the erasure of any Jewish role in the history of the MENA region is described with a sense of ultimate finality in a grand accomplishment, notwithstanding the eternal vicissitudes of human history. In describing the process of conquest of geographies adjacent to the Arab peninsula, he wrote:⁶⁷

[T]he stamp which was in due course imprinted on the entire population, and which was destined to prove permanent, persisting until today, came from the Muslim-Arab invaders. For, while ethnically and culturally they underwent mutual absorption with the compound-population they conquered, they nevertheless bequeathed their language and their new faith to the amalgam. Not only the Arabs themselves, then, but all their predecessors as well, who were arabized by them, 'were and remain.'

Apart from his obviously deep sense of pride in his Arab heritage, Sayegh — who was the son of a Presbyterian minister⁶⁸ — could also not suppress his natural antipathy toward anything that might tend to compete with collective glory of the Arab world, including Israel. This is apparent from his unsuppressed desire to mock Israel because its Jewish citizens expressed admiration of their own religious concept of "chosenness." In his remarks at the Tripoli symposium in 1976, Sayegh elaborated on his disdain for Zionism by dwelling on the reliance of some of its adherents to this concept, about which he said "zionist literature abounds ... [reflecting] this sense of superiority by the zionists."⁶⁹

Actually, the concept abounds in Judaism based on ancient holy texts, where the Jews considered themselves having the promise of ultimate redemption notwithstanding their many sins by their God's gracious choice. Moreover, in and of itself, the sense of pride in Judaism reflected by being "chosen" says nothing about the likely treatment of Arab inhabitants. Numerous multicultural societies have population segments that may seem to take excessive pride of their own ethnicity, without that translating into legalized discrimination against members of other cultures on racist grounds. Such a charge of state racism was not even a widely held view among Arab scholars prior to Sayegh's monograph. Even Sayegh, in an earlier time frame, had not chosen to describe Israelis as Westernized colonialists but rather as purveyors of the "Communism [which] exercises [its sway] over the minds, hearts and aspirations of large sectors of the Israeli people" (Sayegh, 1958b).

In fact, well into the 1970s, Palestinian scholars never made much of a point of chronicling a long history of Zionist racism. For example, in a 1977 article entitled "The Palestinian Position," the well-known historian Sabri Jiryis (who began a long tenure as director of the Palestine Information Center the following year) chose to describe "racialist Zionist principles" by referring to Israel's refusal to withdraw from areas territories taken during the 1967 war in order "to keep them open to Jewish settlement, in addition to making them a market for Israeli goods and a reservoir of labour forces that may be required by her economic development."⁷⁰ This could also be explained as ensuring Israel's continuous ability to maintain a Jewish presence on long that lies at the heart of ancient Judaism. But also in the late 1970s, when Jiryis published Volume I of his magnum opus, the *History of Zionism*, (covering the period from 1862 to 1923), no real mention is made of racism. It was not until Volume II (published in 1986) that a brief reference appears in noting that the leaders of the Second Aliyah of the 1920s sought to hire Jewish labor to solidify the communal growth of the *Yishuv*.⁷¹ When it was finally published in a translated English edition in 2025 and renamed *The Foundations of Zionism*, the more precise concern with societal racism appears only in a "newly written conclusion" entitled "Zionism in the service of colonialism"⁷² In it, the

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now 88-year-old author describe how he was treated like a “second-class citizen” even though he was born in 1938, had a residence in the same area where he was born for over at least a decade after 1948, graduated Hebrew University in the late 1950s, and practiced law in Haifa before concerns over his political activities led to his expulsion in 1970. The conclusion further notes that “Zionist racism never disappears, it merely changes form,” because “those racist attitudes towards the Palestinians in Israel are only an extension of the Zionist position towards the Palestinian people as a whole, as the settlers attempt to fragment it and replace it with themselves.”⁷³ If racist “attitudes” and broad claims of “displacement” are sufficient to justify an excommunication of Israel from the world’s family of nations, surely there are other nations that qualify to offer it company.

Before reaching conclusions about Mr. Jiryis’ apparent conversion to the view that Zionism and Israel are founded on “racist attitudes,” it is also worth pausing to consider the story of his family after it left Israel in the 1960s so that he could take a senior role in the development of PLO media communications. He was out of the country until the consummation of the Oslo Accords, after which he was permitted to return to his native village in the Galilee, where he has kept a residence ever since.⁷⁴ While he may continue to believe that Israeli Arabs are disenfranchised, and his daughter and English translator Fida — who also returned to “historic Palestine” — apparently agrees,⁷⁵ his personal story actually reflects a far more nuanced than one of unmitigated racist oppression. It is also consistent with the experiences of many present-day Arab Israelis, such as Nuseir Yassin, an Arab Israeli entrepreneur and media personality whose family remained in Israel after 1948. In summary on this point, True, there are societal problems that remain a challenge for Israel’s Arab sector, which makes up roughly 20% of the entire national population, but they can hardly be considered the type of discrimination that would otherwise lead to the inexorable conclusion that Israel must be treated as the lone pariah among the world’s nations. While there are numerous distinctions in the Israeli system based on what is described as a citizen’s original “nationality” — whether it be Druze, Arab, or Jewish — and notable disparities in liv-

ing standards among them, the overall reality reflects an imperfect system in which alleviating hardship associated with the adversities borne by ethnic minorities is considered a widely-shared societal concern, much as is true in many other advanced nations. And yet unlike those countries, there is nonetheless an ongoing uproar over Israel's racially discriminatory shortcomings. With similar problems surely evident elsewhere, the question that must be asked is why is this now singled out so dramatically in relation to Israel and virtually no where else in the MENA region?

There are a few paragraphs missing here relating to Arab perceptions of Israel as an affront to "authentic Islam" of the Arab world and its effect on Arab nationalists who may have given up on the pan-Arab dream but remain inspired to view the "return" of Palestine to the Arab fold as critical to restoring the direction of the Arab world. The "racism," "apartheid" and "genocide" angles should ring hollow if the concept of what really drives the continuous preoccupation with Israel among Islamist intellectuals, but they have succeeded in repackaging it as a crime perpetrated on the West for these reasons, even though their real passion for the cause is derived from how it breaks the concept of the Arab world as a unified, indivisible whole, which is an exemplar to the rest of the Islamic world. Sources for this are found in Zaina Halabi's 2017 book, *The Unmaking of the Arab Intellectual*⁷⁶ and Ibrahim Abu-Rabi's *Contemporary Arab Thought: Studies in Post-1967 Arab Intellectual History*. (Abu-Rabi, 2004)

Resuming regular programming

In seeking conclusions on the accelerating rise of Israel hatred in today's world, it seems clear that goading the West into casting judgment of eliminationist guilt on the Jewish state on the grounds of its inherent racism has become an overarching objective. Noura Erekat has all but described it as the key ingredient of a "dominant Palestinian tradition," derived from "Palestinian intellectual thought," that Zionism as "a form of racism and racial discrimination" must be established and recognized as a foundational and unassailable truth, regardless of whether the UNGA backtracked on its resolution to the same

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effect.⁷⁷ Borrowing a well-known phrase coined by Black American socialist (and eventual Marxist) W.E.B. Du Bois,⁷⁸ this tight coupling of Israel and Racism depends on “analyzing the workings of the color line in Palestine and Israel and mapping the trajectories through which race and racialization came to play a central role in the land, illuminate the truly global reach of its logic and highlight some of the properties that have made the global color line so durable.”⁷⁹

But while the “color line” concept can easily be seen as intellectually honest and potentially useful to describe 20th century Black experiences in the Jim Crow southern United States, and in the totalitarian effects of apartheid South Africa, its application to Israel should remain more complicated than cutting and pasting those historical realities on today’s Palestinians. As explored in previous sections, the fundamental problem is not just whether they can be deemed “racialized” based on something other than skin color, or on what their own champions describe as “traditional conceptions of ‘race’” (Dugard and Reynolds, 2013, 885). but whether the proscriptions of international law would extend to such a form of discrimination at all. As at least one more honest scholar in the same ideological mold has recognized, if the treaties and conventions applicable to apartheid and genocide are to be respected in the era in which they were passed, being “Palestinian” cannot be the basis of racialization because the definitional frameworks were “grounded in the assumption that ‘race’ is immutable and biologically determined.”⁸⁰ In other words, Palestinian cannot mean both a racial group and a subset of Arab ethnic identity unless “how international criminal law defines protected ‘groups’” is made clearer.

The fundamental question again arises, which will be turned to in this paper’s next and final section: why has racism become virtually synonymous with discussions about Zionism and Israel, and what role has the UN played in this current reality? Clearly, Frantz Fanon was right in noting that “[a]t the United Nations there is a commission to fight race prejudice,” but how is that among all the countries in the world, Israel is the one constantly being singled out as the incorrigible pariah state on that account? The deeper issue here is whether in the context of Palestine’s “perpetual resistance,” in respect of which Hamas

and Palestinian Islamic Jihad clearly now lead the political struggle, Israel's racism is what truly supports their vision of a Palestine that aligns with Western notions of liberal democracy, decency, justice and fairness. Or is it far more closely aligned with Islamist notions of sharia theocracy? Whatever the purported failings of Israel, when held up to the standards of the style of governance that formed the paradigm for the basic concept of a UNGA member "nation-state," it is hard to reconcile the charge against the reality.⁸¹ Instead, it must be understood as something different, which is a grounds invented for discarding the overall contours of the concept of nationality altogether, and replacing it with a style that is exactly the opposite to what it claims it is designed to do. The "tradition" itself, rather than its target of intolerance, is what is hostile to the diverse lifestyles that result in multicultural societies. How is that, only a few years after the seismic shift of October 7, the idea of the destruction of Israel is still celebrated when it should be seen as antithetical to the very concept of discrimination on which it is based?

One final anecdote on this dubious barometer of the twisted direction of social justice and racial injustice is worthwhile to end this section. A few months before October 2023, a member of Congress who is a leader of the "progressive" caucus among its Democratic Party members apologized for referring to Israel as a "racist state."⁸² In her defense, she noted that the phrase came to mind onstage as she sought "to defuse a tense situation ... where fellow members of Congress were being protested." But a New York Times columnist ridiculed what she called the "hysterical overreaction to Jayapal's 'racist state' gaffe," noting "if Israel's champions are truly worried about the fallout from accusations of racism, they might act to make them seem less credible."⁸³ Roughly 18 months later, grassroots organizations aligned with the party's "progressive" wing — a wing that lately appears to have subsumed by the Democratic Socialists of America (DSA) — went on record with the following:⁸⁴

In the DSA, we do not support Zionism. To take an anti-Zionist stance is to speak and act against the racist violence of the ethno-nationalist state, unleashed with brutality and im-

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punishment on the Palestinian people, land, culture, and future and propped up by colonial logics and imperialist calculations of the global powers such as the US.

This statement makes clear that from a larger perspective, the theme now running so deeply about Israel's racism is not entirely about Israel, even if the takers of "an anti-Zionist stance" consider that particular postage-stamp sized nation their immediate adversary. Rather, the larger target is revealed by the interwoven narratives that proclaim a perpetual crisis of racism throughout the Western world — the "colonial logics and imperialist calculations" — resulting from a long, disgraceful history. The echoes of this sentiment can be heard from decades ago. In *Orientalism*, Edward Said wrote that under the "system of truths" imbued in Western thought, "every European, in what he could say about the Orient, was consequently a racist, an imperialist, and almost totally ethnocentric" (E. W. Said, 1978, 204). The same "germ of truth," if it can fairly be called that, has now crossed the Atlantic Ocean and infiltrated the world's largest liberal democracy with calls-to-action based on its presumed self-evident truth.

But again, to what extent — and why — has the UNGA become the willing institutional handmaiden of this expanding state of destructive, dysfunctional, and perhaps ultimately suicidal state of nation-state affairs? And is it possible that rather than "dehumanizing the Zionist problem," that body can at some point reclaim the noble vision of the era of its initial formation, and start working toward "rehumanizing the nation-state problem"? That is the subject of the next and final section of this paper.

Notes to Chapter 4

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covenantal tribalism as incompatible with the principles of Humanität. And whereas Protestant theologians could muster a certain regard for the pristine Hebraism of the biblical prophets, they had no sympathy whatsoever for 'degenerate' post-exilic *Judenthum*.)"

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